Banks and Gesso, LLC

720 Kipling St.,Suite117
Lakewood, Colorado 80215

(303) 274-4277
Fax (303) 274-8329
www.banksandgesso.com

April 10, 2003

Mr. Graham Billingsley
Director
Boulder County Land Use Department
Courthouse Annex Building
2045 13th Street
Boulder, CO 80306

RE: Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit Has Lapsed as Defined in Article 4-604(C) of the Land Use Code.

Dear Mr. Billingsley:

Cemex, Inc. (formerly known as Southdown, Inc., and successor of merger to Southwestern Portland Cement Co.) is requesting that the Board of County Commissioners make a determination on the above referenced matter. This letter contains Cemex's position on the issue and a chronological documentation to support that position.

Tire Derived Fuel (TDF) use and/or tire storage was implemented at the Lyons Plant between 1989 and 1993. Although actual burning of tires did not occur between 1993 and 2002 for technical and economic reasons, it has always been the intent of management to use TDF when the technical and economic conditions were suitable. To this end, Cemex and its predecessors have continued the policy of maintaining permits and facilities related to TDF use while working to promote its use both locally and at the corporate level.

By this request, Cemex does not agree that the lapse provision of Article 4-604(C) is retroactively applicable to permits issued prior to its enactment in 1996. This issue remains the subject of litigation in Boulder County District Court, Case No. 02CV1616, and Cemex reserves the right to appeal any final determination on this issue by that court, and the right to pursue any claim against Boulder County in that regard. The purpose of this request is to facilitate an expedited resolution of this issue.

Article 4-604C of the Land Use Code states in part "...An approved special use shall be deemed inactive...if there has been no activity under any portion of the special use

permit for a continuous period of five years…". Cemex's activity under the Special use permit includes at least the following:

- Continuous use of the kiln and the burning of fuel in the kiln;
- Maintenance of State and local permits and compliance with the conditions of those permits;
- Legal and consulting activity related to the Special Use Permit;
- Correspondence, design work, trial burns, emissions testing and other work related to the Special Use Permit;
- Annual reports, inspections, monitoring, etc.;
- Maintenance of financial assurances associated with the Special Use Permit;
- Corporate activity and expense related to the promotion and implementation of TDF use company-wide.

Also, we interpret this provision of the code as meaning that if there was at least one relevant activity within any five-year span after the adoption of lapse provision regulation 4-604(C), the special use permit cannot be deemed inactive.

Attached to this letter is a preliminary chronological documentation of these items for your consideration of this request. Supplemental information related to corporate activity and expenditure in pursuit of Tire Derived Fuel use will be submitted to the Board prior to or during the public hearing on this issue.

If it is determined that the Special Use Permit has lapsed within the meaning of Article 4-604(C), Cemex would request that the County, in its discretion, not enforce the provision retroactively, given the particular circumstances of this case. Cemex was not given fair notice that the lapse provision could or would be retroactively applied to its permit, especially considering that the County staff and County Board of Adjustment have interpreted the provision as not applying to existing permits. Over the past seven years, Cemex has spent a considerable sum of money pursuing the goal of implementing a process for the use of whole tires as fuel, justifiably relying on its existing permits. In 2002, Cemex spent approximately $150,000 on the TDF test burn.

Please note that Cemex's attorney, Mr. Ray Petros, contributed to the preparation of this letter.

Thank you for your attention to these matters. Please have your staff contact John Lohr or myself if there are any questions.

Sincerely,

Paul Banks

Attachments

cc: John Lohr, Cemex
Ray Petros, Esq., Petros and White

Chronological Documentation

Activities Under SU-88-21

1988 – Present

Date	Item
Nov. 1, 1988	Development Application Form submitted to Boulder County Land Use Department requesting a certificate of designation (CD) as a solid waste facility for recycling tires and/or rubber by incineration in the Portland cement kiln.
Nov. 23, 1988	Cover letter regarding submittal of application for Certificate of Designation to HMWMD*.
Jan. 5, 1989	Letter confirming preliminary review of application Docket #SU-88-21
March 7, 1989	Letter from Colo. Dept. of Health to BOCC recommending approval of the CD, with conditions.
May 30, 1989	BOCC approval of Docket #SU-88-21, request for Special Use, Site Specific Development Plan and Cert. of Designation for Solid Waste Disposal Site, with conditions.
June 22, 1989	Initial Approval of construction permit #12BO444 from Colo. Dept. of Health Air Pollution Control Division, including conditions allowing use of tire derived fuel (TDF)..
Sept. 5, 1989	Notarized agreement between Boulder BOCC and Southwestern Portland Cement Company regarding Docket #SU-88-21.
Nov. 1989	Submittal of Emergency Fire Fighting Plan to Boulder Co. Health Department, Hygiene Fire Department and Lyons Fire Department.
Jan. 5, 1990, Jan. 22, 1990 March 6, 1990	Kiln dust analysis reports (3) to Boulder County Land Use as required by Item #3 of permit.
Feb. 1, 1990	Resolution 90-59 approving Docket #SU-88-21.
Aug. 1, 1990	Tire Utilization Report submitted to Boulder County Land Use.
August 1991	Tire Inventory Report submitted to Colo. Air Pollution Control Division.
Jan. 12, 1993	Tire Utilization Report submitted to Boulder County Land Use, Boulder Co. Health Dept. and Colo. Dept. of Health.
Sept. 9, 1993	Tire Utilization Report to Boulder County Land Use Department.
Dec. 17, 1993	Final approval, from the Air Pollution Control Division, of Construction Permit 12BO444-2, including the use of up to 18,400 tons per year of tires as fuel.
March 1995	Proposed "Closure Plan for Tire Recycling Facility" prepared pursuant to applicable regulations, if and when formal closure would be commenced by the Lyons Cement Plant.
Jan. 1996-present	Quarterly Reporting to Hazardous Substance Response Fund.

(continued)

Date	Item
Mar. 31, 1997	Confirmation from HMWMD* regarding exemption from Financial Assurance during periods when tires are not being burned or stored on site.
Feb. 1, 2000	Permit #95OPBO082 issued by Colo. Dept. of Public Health and Environment Air Pollution Control Division with permit conditions related to use of whole or shredded tires as fuel.
Oct. 23, 2000	Letter confirming HMWMD* Facility Inspection on Sep. 29, 2000
Aug. 7, 2001	HMWMD* Facility Inspection
April 4, 2002	HMWMD* Facility Inspection
July 1, 2002	Notification to Colo. Dept. of Public Health and Environment Air Pollution Control Division about the proposed TDF test burn.
Sept. 5, 2002	Letter from Boulder Co. Land Use regarding status of Special Use Permit and Certificate of Designation.
Sep. 9, 2002	Notification to Colo. Dept. of Public Health and Environment Air Pollution Control Division about the proposed TDF test burn.
Oct. 8, 2002	Title V revised permit #95OPBO082 issued, including conditions specifically allowing TDF use.
Nov. 1, 2002	Revised Testing Protocol Report for the proposed TDF test burn.
Nov. 12, 2002	Request from HMWMD* for financial assurance related to proposed test burn.
Nov. 14, 2002	Notice to Boulder County regarding TDF test burn.
Nov. 14, 2002	Public Advertisement and notice of public meeting regarding TDF test burn.
Nov. 18, 2002	Financial Assurance submitted to HMWMD* for the proposed test burn.

*HMWMD—Colo. Department of Public Health & Environment – Hazardous Materials and Waste Management Division

DEVELOPMENT APPLICATION FORM

Land Use Department

Boulder County

P O BOX 471 • 14TH & SPRUCE STREETS • BOULDER COLORADO 80306 • (303) 441-3930

DEPARTMENT USE ONLY

DOCKET NUMBER

DATE SUBMITTED

HEALTH DEPARTMENT INITIAL

BOCC ACTION/DATE

PROJECT NAME: Lyons Rubber Recycling Facility

APPLICANT'S NAME	STREET ADDRESS
Southwestern Portland Cement Company	5134 Ute Highway 3 miles east of Lyons on Highway 66
CITY: Lyons — STATE: Colorado	ZIP CODE: 80540 — PHONE NUMBER: Metro 534-4206 (303) 823-6685
PROPERTY OWNER'S NAME: Southwestern Portland Cement Company	STREET ADDRESS: Same
CITY: Same — STATE:	ZIP CODE: 80540 — PHONE NUMBER: Metro 534-4206 (303) 823-6685
PLANNING CONSULTANT	STREET ADDRESS
CITY — STATE	ZIP CODE — PHONE NUMBER ( )
ENGINEERING CONSULTANT	STREET ADDRESS
CITY — STATE	ZIP CODE — PHONE NUMBER ( )

PC ACTION/DATE

GENERAL LOCATION • LEGAL DESCRIPTION • SITE DATA

GENERAL LOCATION: Southwestern Portland Cement Plant - 3 miles east of Lyons

ADDRESS: 5134 Ute Highway, Lyons, Colorado

LOT	BLOCK	SUBDIVISION	SECTION	TOWNSHIP	RANGE
			21, 28	3N	70W

BOA ACTION/DATE

TYPE OF REQUEST

APPLICATION TYPE	MONTHLY DEADLINE[1]	SUBMITTAL FEE[2,3]	NUMBERS REFER TO DATA WHICH MUST ACCOMPANY THE APPLICATION (SEE REVERSE SIDE) (A summary only, intended to aid the applicant in the collection of material and may be expanded or reduced depending on the particular application)
☐ Subdivision Sketch Plan - Simple (7 Lots or Less)	3rd Wed.	$1,300.00	1,2,3,6,7,8,9,10,11ac,12,13afg,14,22
☐ Subdivision Sketch Plan - Complex (More than 7 Lots)	3rd Wed.	1,800.00	1,2,3,6,7,8,9,10,11ac,12,13afg,14,22
☐ Subdivision Plan - Preliminary	3rd Wed.	1,000.00	1,2,4,6,7,8,10,11b,14,22
☐ Subdivision Plan - Final	3rd Wed.	1,500.00	1,2,5,7,8,10,11abd,12,14,15,17,18,19,20,22
☐ Resubdivision/Replat	3rd Wed.	650.00	1,3,4,5,6,7,8,9,10,11,12,13afg,14,15,16,17,18,19,22
☐ Subdivision Exemption - Preliminary		350.00	1,3,6,11ab,12,13g,22
☐ Subdivision Exemption - Final		350.00	1,3,6,8,11ab,12,13gh,15,16,22
☐ Rezoning	3rd Wed.	1,000.00	1,3,6,8,11b,12,13abfg,22
☒ Special Use	3rd Wed.	1,700.00	1,2,3,6,7,8,9,10,11,12,13aefg,18,22
☐ Special Use - Open Subsurface Mining or Landfill	3rd Wed.	2,700.00	1,2,3,6,7,8,9,10,11,12,13aefg,18,22
☐ Special Use - Group Care Facility	3rd Wed.	600.00	1,6,8,13a,16,21,22
☐ Vacation Easement/Road	3rd Wed.	400.00	1,6,8,22
☐ Road Name Change	3rd Wed.	300.00	1,2,3,6,8,13cf,22
☐ Board of Adjustment Variance	3rd Wed.	600.00	1,13d,22
☐ Board of Adjustment Appeal of Administrative Decision	3rd Wed.	600.00	1,13d,22
☐ Board of Review		400.00	1,3,6,7,8,13af,14,22
☐ Location and Extent Review	3rd Wed.	750.00	1,8,22
☐ Request for Extension of Approval	3rd Wed.	200.00	1,10,14,17,18,22
☐ Flood Plain Development Permit		50.00	See Regulations - Article 17 B.C.Z.R.
☐ Special Use Monitoring		150.00	1,8,22 (Per Review)
☐ Expired Plan Review		350.00	1,7,22
☐ Historic Zone Permit Review		150.00	See Regulations - Article 10 B.C.Z.R.
☐ Clerical Assistance		17.00²/Hr.	Plus Copying & Material Costs
☐ Other			

[1] Application deadline on noon of the stated day.
[2] Additional consultants fees and fees established by review agencies may be changed to the applicant. On multiple requests, applicant pays highest single fee. Fees are based on an average. If the application exceeds the average, additional charges may be required by the B.O.C.C.
[3] Application is incomplete without full fee. If waiver or rebate is requested the B.O.C.C. will consider a request after final action.

CERTIFICATION

I certify that the information and exhibits I have submitted are true and correct to the best of my knowledge. In filing the application I am acting with the knowledge and consent of those persons who are owners of the subject property or are parties to this application. I understand that the proper filing fee, as established by Boulder County must be paid and all materials required by Boulder County must be submitted prior to having this matter processed. I understand that public hearings or meetings may be required. I understand that additional fees or materials may be required as a result of considerations which may arise in the processing of docket. I understand that road, school and park dedications may be required as a condition of approval.

SIGNATURE	DATE	TITLE *
Gerald L Anderson	Nov 1, 1988	V.P. special projects
SIGNATURE	DATE	TITLE *

DOCKET NUMBER

REF B.O.C.C. RESOLUTION 87-54 APPROVED 7/24/87

* If agent for owner attach permission or other documents that certify agents rights to submit application

	NUMBER OF COPIES
1. Development Summary Form and Written Description of Proposal	
2. Building Plans and/or Landscape Plan	
3. Site Plan* or Sketch Plan Map* 24" x 36"	
8½" x 11"	1
4. Preliminary Plan Map* 24" x 36"	
8½" x 11"	1
5. Final Plat Map* 24" x 36"	
8½" x 11"	1
6. Vicinity Map (on site plat, sketch, preliminary or 8½" x 11")	
7. Engineering Plan	
a. Road Plans	
b. Overlot Grading Plans	
c. Drainage Plan & Report	
d. Utility Plans	
e. Transportation Study	
f. Topographic Map ____ ft. intervals 24" x 36"	
g. Other Engineering Plans or Studies	
8. Title Report	1
9. Soil Report	
10. Geology Report	
11. Water	
a. Well permit or letter of "Agreement to Serve"	
b. Evidence of adequate quantity and quality	
c. Demographic information	
d. "Commitment to Serve"	
12. Wastes	
a. Letter of "agreement to serve"	
b. Percolation Test	
c. Demographic information	
d. "Commitment to Serve"	
13. Written Discussion Explaining:	
a. Conformance with BCCP	
b. Conformance with Rezoning Criteria	
c. Statement of Hardship	
d. Statement of Appeal	
e. Conformance with Special Use Criteria	
f. Site Features of the Property	
g. Availability and Adequacy of Services	
h. Conformance with Exemption Criteria	
14. Estimated Cost of Improvements	1
15. Closure tapes	1
16. Deeds and/or Legal Descriptions	
17. Subdivision Agreement	
18. Guarantee of Improvements	
19. Homeowners Covenants	
20. Conservation Easement	
21. Signoffs from Utility Providers	1
22. Other Material as Necessary	

* Contents based on specific requirements as contained in the regulations.

Boulder County land use department

DEVELOPMENT SUMMARY FORM

DEPARTMENT USE ONLY
DOCKET NUMBER
SUB TYPE
EXE TYPE
SU TYPE
DU TYPE

PROJECT NAME: Lyons Rubber Recycling Facility

APPLICANT: Southwestern Portland Cement Company

PROPERTY OWNER: Southwestern Portland Cement Company

TYPE OF REQUEST

- ☐ ROAD NAME CHANGE
- ☐ VACATION
- ☐ REZONING
- ☐ BOA VARIANCE APPEAL
- ☒ SPECIAL USE
- ☐ LOCATION & EXTENT
- ☐ SUBDIVISION EXEMPTION
- ☐ OTHER: _____
- ☐ SUBDIVISION SKETCH PLAN
- ☐ SUBDIVISION PRELIMINARY PLAN
- ☐ SUBDIVISION FINAL PLAT
- ☐ RESUBDIVISION (REPLAT)

NATURE OF REQUEST OR (FOR BOA VARIANCE ONLY, STATEMENT OF HARDSHIP

Certificate of designation as a solid waste facility for recycling tires and/or rubber by incineration in our Portland cement kiln.

GENERAL LOCATION • LEGAL DESCRIPTION

GENERAL LOCATION: Southwestern Portland Cement Plant 3 miles east of Lyons, Colo

ADDRESS: 5134 Ute Highway Lyons, Colorado

LOT	BLOCK	SUBDIVISION	SECTION	TOWNSHIP	RANGE
			21 & 28	3N	70W

ACRES	EXISTING ZONING	PROPOSED ZONING
126	EGI	Same

PERCENT SINGLE FAMILY	PERCENT MULTI FAMILY	PERCENT OPEN OR UNDEVELOPED
None	None	

EXISTING USE OF PROPERTY	NUMBER OF EXISTING LOTS	NUMBER OF PROPOSED LOTS
Portland Cement Plant	-	-

NUMBER OF EXISTING DWELLINGS	NUMBER OF PROPOSED DWELLINGS	PROPOSED SQUARE FEET COMMERCIAL INDUSTRIAL
None	None	

WATER	SEWAGE	ELECTRIC
City of Longmont	Septic	Poudre Valley

TELEPHONE	GAS	DITCHES	CITY OR TOWN WITHIN 2 MILES
534-4206		Smead	Lyons

FIRE RESPONSE AREA	SCHOOL DISTRICT	PARCEL ID NUMBER(S)
Hygiene - Lyons		

COMPREHENSIVE PLAN LAND USE DESIGNATION	BOULDER COUNTY COMPREHENSIVE PLAN ANALYSIS AREA	ACRES OF AGRICULTURAL LAND REMOVED FROM PRODUCTION

SUBDIVISION INFORMATION

PROPOSED ACRES IN OPEN SPACE AGRICULTURAL PRESERVATION	PRICE RANGE OF LOTS DWELLINGS
N/A	$ N/A $

		PUBLIC	PRIVATE
ROADS	MILES OF NEW ROADS ?	None	
	ACRES DEDICATED TO ROADS None	None	None

ESTIMATED CONSTRUCTION DATES	BEGIN	COMPLETE

OTHER

SUBDIVISION EXEMPTION INFORMATION

EXISTING PARCEL(S)

DESCRIPTION	ONE	TWO	THREE	FOUR	FIVE
ACREAGE					
FRONTAGE					
DATE ACQUIRED					
OWNER					
DATE CREATED					
EXISTING IMPROVEMENTS					
DATE CONSTRUCTED					
SETBACKS FRONT/REAR					
SETBACKS SIDE/SIDE					

PROPOSED PARCEL(S)

ACREAGE					
FRONTAGE					
SETBACKS FRONT/REAR					
SETBACKS SIDE/SIDE					
OWNER					

PROPERTY OWNERS

PARCEL	NAME	STREET ADDRESS			
1	CITY	STATE	ZIP CODE	PHONE NUMBER ( )	
2	NAME	STREET ADDRESS			
	CITY	STATE	ZIP CODE	PHONE NUMBER ( )	
3	NAME	STREET ADDRESS			
	CITY	STATE	ZIP CODE	PHONE NUMBER ( )	
4	NAME	STREET ADDRESS			
	CITY	STATE	ZIP CODE	PHONE NUMBER ( )	
5	NAME	STREET ADDRESS			
	CITY	STATE	ZIP CODE	PHONE NUMBER ( )	

REMARKS

SOUTHWESTERN PORTLAND CEMENT COMPANY

SOUTHWEST DIVISION

P.O. BOX 529
LYONS, COLORADO 80540
(303) 823-6685

November 23, 1988

Mr. Steve Orzynski, P.E.
Public Health Engineer
Land Pollution Control Section
Colorado Department of Health
4210 E. 11th Avenue
Denver, Colorado 80220

Dear Mr. Orzynski:

Per our telephone conversation on Tuesday, November 22, 1988, I am sending you one complete set of application forms for the Certificate of Designation Permit to receive and burn automobile tires as fuel at the Lyons plant.

Also, I am sending you three reports - one from California, June 1986; one sponsored by the D. O. E., October 1984; and one from the United States Bureau of Mines.

You also asked how many tires we would store at the plant. I believe we would store up to a 30-day reserve of tires or approximately 1000 to 1500 tons of material.

I am working with various companies on receiving shredded tires as fuel for the Lyons rotary kiln and to receive shredded tires until such time that we can determine the air quality, product quality and stability of the kiln and related equipment.

If we can work out some kind of an agreement with the tire owners for shredding tires on a long-term basis that is attractive economically, then we would look very hard at staying with this type of material.

We would pursue the tire storage and shredding operations if we cannot come to some kind of an economical agreement with the various tire supply owners in Northern Colorado. Again, we would only store up to a 30-day supply of tires at the Lyons facility. If we build a facility to house the shredding equipment, we would also have space in the building to store some tires; if we have to store tires outside, they would be on a concrete slab with immediate access for all concerned.

Very truly yours,

SOUTHWESTERN PORTLAND CEMENT

Gerald L. Anderson
Vice President-Projects

GLA:lw
Attachments

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

2040 14th Street • 14th & Spruce Streets • Administrative Services Building, 2nd Floor • Boulder, Colorado 80302 • (303) 441-3930

January 5, 1989

Gerald Anderson
Southwest Portland Cement Co.
5134 Ute Highway
Lyons, CO 80540

Dear Mr. Anderson:

On Wednesday January 4, 1989, the staffs of the Boulder County Land Use, Public Works, and Health Departments met for preliminary review of your application, Docket #SU-88-21, Lyons Rubber Recycling Facility. At that time, responses from referral agencies and concerns of staff were discussed. The responses received are enclosed and summarized below. In addition, several important referral agencies have indicated that they have received insufficient information or time to respond. In order for staff to formulate our recommendation on this application, the following information or actions will be necessary:

1) Responses from both the Air Pollution and Solid Waste sections of the Colorado Department of Health must be received and reviewed. Solid Waste has indicated that several months may be required. Air Pollution has not responded.
2) The additional information requested by the Boulder County Health Department should be supplied directly to George Matthews for his review.
3) As noted by the Sheriff, the response of the Hygiene Fire Protection District is important. No such response has been received. Please contact the District directly to assure that they received and understand the proposal and respond.
4) No response has been received from the Town of Lyons. Staff would expect similar concerns to those expressed by Longmont. Any response received will be forwarded.
5) Respond to other comments received as appropriate.

The next staff review of this application will be February 1, 1989. In order for additional information to be evaluated, it must reach my office no later than January 25, 1989. If this information cannot be provided by that date, formulation of a staff recommendation will not be possible and I would recommend that you request a 30 day delay in processing. Such a delay would lead to a hearing by the Planning Commission on March 15, 1989 and by the Board of County Commissioners in late April, 1989. If you have any questions or require any further information, please feel free to contact me.

Sincerely,

Ken Ziebarth
Planner, Operational Planning Division

Enclosures

Josephine W. Heath
County Commissioner

Ronald K. Stewart
County Commissioner

Herbert E. "Buz" Smith, Jr.
County Commissioner

STATE OF COLORADO

COLORADO DEPARTMENT OF HEALTH

4210 East 11th Avenue
Denver, Colorado 80220
Phone (303) 320-8333

Roy Romer
Governor

Thomas M. Vernon, M.D.
Executive Director

March 7, 1989

Boulder County Board of Commissioners
Box 471
Boulder, CO 80306

RE: Southwestern Portland Cement Company Certificate of Designation Application

Dear Commissioners:

The Hazardous Materials and Waste Management Division (the Division) of the Colorado Department of Health has completed its technical review of the Certificate of Designation application for Southwestern Portland Cement Company to utilize scrap tires as fuel in its Lyons' cement kiln as submitted on November 23, 1988 and revised on January 31, 1898. The application was reviewed to determine if the facility could comply with the minimum standards of the Solid Wastes Disposal Sites and Facilities Act (the Act), 30-20-100, et seq, C.R.S. 1973 as amended, and with the regulations promulgated thereunder, 6 CCR 1007-2, known as the Regulations Pertaining to Solid Waste Disposal Sites and Facilities (the Regulations).

The following major facility commitments are agreed to by the applicant, Southwestern Portland Cement Company, as contained within the application:

1. The facility initially plans to utilize shredded tires obtained from off-site sources as an alternative fuel (a maximum of 25% based on BTU value) in its cement kiln. No more than a one-month supply of shreds (equivalent to 150,000 whole tires) will be stored at any time over an 8-inch concrete pad located adjacent to the kiln's preheater. This shredded tire storage area will cover an approximate area of 100 feet by 50 feet with a height of 13 feet.

2. If the usage of shredded tires does not adversely affect the operation or product quality of the kiln, Southwestern may install a shredder to shred tires on-site or may alter the kiln to utilize whole tires. Whole tires would be stored over a base of 12 to 20 inches thick clinker located south of the clinker storage A-frame building. At any time, no more than a 10-day supply of whole tires (50,000 tires) would be stored in two piles each having approximate dimensions of 75 feet by 75 feet by 13 feet high. At no time would the number of shredded and whole tire storage exceed a total of 200,000 tires.

3. The facility has controlled access points, fencing, and 24-hour surveillance to provide security. A working telephone is maintained at the facility.

4. The facility's plan to extinguish a potential tire fire consists of the following: adequate stockpiled volumes and types of materials to extinguish a fire exist at the on-site quarry at all times; an eight inch fire water line with hydrant is located within 300 feet of the whole and shredded tire storage areas; two 85-ton and three 50-ton dump trucks, two 13-yard and one 8-yard loaders, one D-8 dozer, one water wagon and one 32-yard scraper are available at the site at all times; all-weather access roads are continuously maintained between the storage areas and the quarry; and Gerald Anderson would serve as on-site coordinator for any emergency associated with the scrap tire storage.

It is the assessment of this Division that the proposed facility can comply with the minimum standards of the Act and with the Regulations: if the facility is constructed and operated as detailed in the submitted Certificate of Designation application, and as summarized above; and if the construction and operation includes the listed recommendations of the Division. Based on this assessment, the Division recommends approval of the facility contingent upon the inclusion of the following recommendations as part of the Certificate of Designation, as issued:

1. Southwestern Portland Cement Company will obtain its revised Colorado Air Pollution Emission Permit before beginning to accept or burn shredded or whole tires.

2. Starting on August 1, 1989 and on August 1st of each subsequent year, an annual report will be submitted to the Boulder County Health Department and the Colorado Department of Health. This report shall indicate on a monthly basis and annual total, the weight of whole and shredded tires received, the weight of whole tires shredded, the weight of whole and shredded tires utilized in the kiln, and the weight of whole and shredded tires in storage.

3. RCRA EP toxicity analyses of the kiln dust shall be performed for each 1,500 tons of tire material utilized during the first three months and for each 3,000 tons of material utilized in the following four months. A minimum of three separate RCRA EP toxicity analyses will be provided within the first seven months of operation. These results shall be reported to the Boulder County and State Health Department.

4. Mosquito and other vector control programs will be instituted as necessary to ensure that the tire storage areas do not increase area vector populations.

5. Southwestern will develop and implement a tire fire coordination program with the Lyons and Hygiene fire departments by August 1, 1989. This program should identify the personnel, equipment, materials, and sequence of events that will be used to fight a tire fire. All identified personnel should be trained in the program. A report detailing the program should be submitted to the Boulder County and State Health Department by August 1, 1989.

6. Surface runoff will be diverted away from the shredded and whole tire storage areas.

7. Within three months of closure of the kiln, all remaining tires will be either recycled or properly disposed of.

The Division respectfully requests that Boulder County send a copy of the final Certificate of Designation with all conditions to the Division when and if it is issued.

If you have any questions regarding this Division's conditional approval, please contact Steve Orzynski at 331-4863.

Sincerely,

Stephen J. Orzynski, P.E.
Solid Waste and Incident
Management Section
Hazardous Materials and Waste
Management Division

Pamela L. Harley, Section Chief
Solid Waste and Incident
Management Section
Hazardous Materials and Waste
Management Division

SJO/mw/4230K

cc: Gerald Anderson, Southwestern Portland Cement Company
George Matthews, Boulder County Health Department
Ken Ziebarth, Boulder County Land Use Department

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

2040 14th Street • 14th & Spruce Streets • Administrative Services Building, 2nd Floor • Boulder, Colorado 80302 • (303) 441-3930

May 30, 1989

Mr. Gerald Anderson
Southwest Portland Cement Co.
5134 Ute Highway
Lyons, CO 80540

Dear Mr. Anderson:

The purpose of this letter is to certify that at a hearing of the Board of County Commissioners of the County of Boulder, State of Colorado, duly called and held on May 30, 1989, in consideration of the request described as follows:

Docket #SU-88-21 Lyons Rubber Recycling Facility

the following action was taken:

> The Board of County Commissioners of Boulder County, State of Colorado, APPROVED the request for Special Use Site Specific Development Plan, and Certificate of Designation for Solid Waste Disposal Site, use of tires as fuel for cement manufacture subject to the following conditions:

1. That Southwestern Portland Cement Company obtain its revised Colorado Air Pollution Emission Permit before beginning to accept or burn shredded or whole tires.

2. That, starting on August 1, 1989 and on August 1st of each subsequent year, an annual report will be submitted to the Boulder County Land Use and Health Departments and the Colorado Department of Health. This report shall indicate on a monthly basis and annual total, the weight of whole and shredded tires received, the weight of whole tires shredded, the weight of whole and shredded tires utilized in the kiln, and the weight of whole and shredded tires in storage.

3. That RCRA EPA toxicity analyses, and analysis for toxic trace elements, of the kiln dust shall be performed for each 1,500 tons of tire material utilized during the first three months and for each 3,000 tons of material utilized in the following four months. A minimum of three separate such analyses shall be provided within the first seven months of operation. These results shall be reported to the Boulder County Land Use and Health Departments and to the State Health Department.

4. That mosquito and other vector control programs approved by the Boulder County Health Department be instituted as necessary to ensure that the tire storage areas do not increase area vector populations.

5. That Southwestern develop and implement a tire fire coordination program with the Lyons and Hygiene Fire Departments prior to bringing tires to the site. This program should

Josephine W. Heath
County Commissioner

Ronald K. Stewart
County Commissioner

Homer Page
County Commissioner

identify the personnel, equipment, materials, and sequence of events that will be used to fight a tire fire. All identified personnel should be trained in the program. A report detailing the program shall be submitted to the Boulder County Land Use and Health Departments and to the State Health Department.

6. That surface runoff will be diverted away from the shredded and whole tire storage areas.

7. That within three months of closure of the kiln, all remaining tires will be either recycled properly disposed of.

8. That any required Floodplain Development Permit be approved by Boulder County Public Works Department.

9. That a report be made to the Planning Commission and Board of County Commissioners of the results an inspection of the operation made after one year of operation.

10. That the operation proceed as described in all commitments made of record as a part of this Special Review and other required reviews and permits.

The standard model form for the Site Specific Development Agreement is enclosed for your use in preparation of the final agreement implementing this approval. Please use this form and the conditions of approval listed to prepare this document for signature and recording.

If you have any questions concerning this action, please feel free to contact me at the Planning Office at 441-3930.

Sincerely,

Ken Ziebarth

Ken Ziebarth
Planner, Operational Division

cc: file

COLORADO DEPARTMENT OF HEALTH

Air Pollution Control Division

Telephone: (303) 331-8511

EMISSION PERMIT

PERMIT NO: 12BO444

INITIAL APPROVAL [X]

FINAL APPROVAL [ ]

Modification

DATE ISSUED: June 22, 1989

ISSUED TO: *SOUTHWESTERN PORTLAND CEMENT CO.*

THE SOURCE TO WHICH THIS PERMIT APPLIES IS DESCRIBED AND LOCATED AS FOLLOWS:

Manufacturer of Portland Cement located two miles southeast of Lyons, Boulder County, Colorado.

THE SPECIFIC EQUIPMENT OR ACTIVITY SUBJECT TO THIS PERMIT INCLUDES THE FOLLOWING:

Modification of kiln and flash calciner to allow for combustion of used tires as a supplemental fuel for coal. This source is subject to the provisions of New Source Performance Standards for Portland Cement Plants, Regulation No. 6 section IV.

THIS PERMIT IS GRANTED SUBJECT TO ALL RULES AND REGULATIONS OF THE COLORADO AIR QUALITY CONTROL COMMISSION AND THE COLORADO AIR QUALITY CONTROL ACT C.R.S. (25-7-101 et seq), TO THOSE GENERAL TERMS AND CONDITIONS SET FORTH ON THE REVERSE SIDE OF THIS DOCUMENT AND THE FOLLOWING SPECIFIC TERMS AND CONDITIONS:

1. *Visible emissions shall not exceed 20% opacity.*

2. *Construction of this source must commence within 18 months of initial approval permit issuance or within 18 months of the start-up-date stated in the application. If commencement does not occur within the stated time the permit will expire on* December 22, 1990 *(See General Condition No. 6., Item 1 on the reverse side of the first page of this permit).*

continued

0220/003/09

RECEIVED

JUN 3 0 1989

LYONS PLAI

7. A file of daily production rates & kiln feed rates and any particulate measurements shall be maintained. The production and feed rates shall be summarized monthly. The records and summary shall be retained for at least two years following the date of such records and summaries.

By: _____
Review Engineer
Tom Tistinic

By: _____
James S. Geier, P.E., Chief
New Source Review Section
Stationary Sources Program
Air Pollution Control Division

P-12
de

GENERAL TERMS AND CONDITIONS: (IMPORTANT! READ ITEMS 6, 7, and 8)

1. This permit is issued in reliance upon the accuracy and completeness of information supplied by the applicant and is conditioned upon conduction of the activity, or construction, installation and operation of the source, in accordance with this information and with representations made by the applicant or applicant's agents. It is valid only for the equipment and operations or activity specifically identified on the permit.

2. Unless specifically stated otherwise, the general and specific conditions contained in this permit have been determined by the APCD to be necessary to assure compliance with the provisions of C.R.S. 1973, 25-7-114(4)(g) and, as such, shall be enforceable under the provisions of C.R.S. 1973, 25-7-115 after final approval of the permit has been granted. Emission limits are imposed to ensure that emissions will not (1) interfere with reasonable further progress toward attainment of the NAAQS for pollutants as required by C.R.S. 1973, Sections 25-7-114(4)(g)(I)(B) and 25-7-301(i); Section 172(b)(3) of the Federal Clean Air Act, 42 USC 7502 (b)(3); and Section IV.D.2. of the Air Quality Control Commission Regulation No. 3 or (2) result in an exceedance of the NAAQS for pollutants as required by C.R.S. 1973, Sections 25-7-102, 25-7-105(1)(a)(I), and 25-7-201(1)(b); Section 165(a)(3) of the Clean Air Act, 42 USC 7475(a)(3); and Section IV.D.1.c. of Air Quality Control Commission Regulation No. 3.

3. Each and every condition of this permit is a material part hereof and is not severable. Any challenge to, or appeal of, a condition hereof shall constitute a rejection of the entire permit and upon such occurrence this permit shall be deemed denied ab initio. This permit may be revoked at any time prior to final approval by the Air Pollution Control Division (APCD) on grounds set forth in the Colorado Air Quality Control Act and regulations of the Air Quality Control Commission (AQCC), including failure to meet any express term or condition of the permit.

4. This permit and any required attachments must be retained and made available for inspection upon request at the location set forth herein. With respect to a portable source which is moved to a new location, a copy of the revised Air Pollutant Emissions Notice (APEN) (required by law to be submitted to the APCD whenever a portable source is relocated) should be attached to this permit. The permit may be reissued to a new owner by the APCD as provided in Section III.B. of AQCC Regulation No. 3 upon a request for transfer of ownership.

5. Issuance (initial approval) of an emission permit does not provide "final" authority for this activity or operation of this source. Final approval of the permit must be secured from the APCD in writing in accordance with the provisions of C.R.S. 1973, Section 25-7-114(4)(j) and Section IV.H. of AQCC Regulation No. 3. Final approval cannot be granted until the operation or activity commences and has been verified by the APCD as conforming in all respects with the conditions of the permit. If the APCD so determines, it will provide written documentation of such final approval, which does constitute "final" authority to operate.

6. THIS PERMIT AUTOMATICALLY EXPIRES IF you (1) do not commence construction or operation within 18 months after either the date of issuance of this permit or the date on which such construction or activity was scheduled to commence as set forth in the permit, whichever is later, (2) discontinue construction for a period of 18 months or more, or (3) do not complete construction within a reasonable time of the estimated completion date. Extensions of the expiration date may be granted by the APCD upon a showing of good cause by the permittee.

7. YOU MUST notify the APCD at least thirty days (fifteen days for portable sources) prior to commencement of the permitted operation or activity. Failure to do so is a violation of C.R.S. 1973, Section 25-7-114(4)(j) and Regulation No. 3., Section IV.H.1., and can result in the revocation of the permit.

8. YOU MUST obtain final approval within six months of the commencement of operation as that term is defined by the AQCC. Failure to obtain final approval will result in the revocation of the permit.

9. Violation of the terms of a permit which has received final approval or of the provisions of the Colorado Air Quality Control Act or the regulations of the AQCC may result in administrative, civil or criminal enforcement actions under C.R.S. 1973, Sections 25-7-115 (enforcement), 25-7-121 (injunctions), 25-7-122 (civil penalties) and 25-1-114 (criminal penalties).

7-1

#01007295 10/10/89 10:18 AM REAL ESTATE RECORDS
F1598 CHARLOTTE HOUSTON BOULDER CNTY CO RECORDER

LYONS RUBBER RECYCLING FACILITY
DOCKET #SU-88-21

SOUTHWESTERN PORTLAND CEMENT COMPANY

This Agreement is made on this 5th day of ~~August~~ September, 1989, by and between the Board of County Commissioners of Boulder County, Colorado, hereinafter referred to as the "County", and Southwestern Portland Cement Company, hereinafter called the "Company".

Whereas the Company has submitted to County for special use approval for a Rubber Recycling Facility, hereinafter referred to as "Project", and whereas County has fully considered the proposed Project and the requirements to be imposed upon the Project and properties by reason of the proposed Project.

Whereas the County and the Company mutually acknowledge and agree that the matters herein set forth are reasonable conditions and requirements to be imposed by the County in connection with its approval of the Project.

1. That Southwestern Portland Cement Company obtain its revised Colorado Air Pollution Emission permit before beginning to accept or burn shredded or whole tires.

EXHIBIT
rubber
E
02CV1616

2. That starting on September 1, 1989 and on September 1st of each subsequent year, an annual report will be submitted to the Boulder County Land Use and Health Department and the Colorado Department of Health. This report shall indicate on a monthly basis and an annual total, the weight of whole and shredded tires received, the weight of whole tires shredded, the weight of whole and shredded tires utilized in the kiln, and the weight of whole and shredded tires in storage.

3. That a RCRA-EP toxicity analysis, pursuant to 40 CFR § 261-Appendix II, of the kiln dust shall be performed for each 1,500 tons of tire material utilized during the first three months and for each 3,000 tons of material utilized in the following four months. A minimum of three separate such analyses shall be provided within the first seven months of operation. These results shall be reported to the Boulder County Land Use and Health Department and to the State Health Department.

4. That mosquito and other vector control programs approved by the Boulder County Health Department be instituted as necessary to ensure that the tire storage areas do not increase area vector populations.

5. That the Company develop and implement a tire fire coordination program with Lyons' and Hygiene's fire departments prior to bringing tires to the site. This program should identify the personnel, equipment, materials and sequence of events that will be used to fight a tire fire. All identified personnel should be trained in the program. A report detailing the program shall be submitted to the Boulder County Land Use and Health Departments and to the State Health Department.

6. That surface run-off will be diverted away from the shredded and whole tire storage areas.

7. That within three months of closure of the kiln, all remaining tires will be either recycled or properly disposed of.

8. That any required flood plain development permit be approved by Boulder County Public Works Department.

9. That a report be made to the Planning Commission and Board of County Commissioners of the results and inspection of the operation made after one year of operation.

10. The County may conduct a periodic review of the status of the development which is the subject of this agreement, said review to occur at 12-month intervals.

11. In consideration of the above conditions and covenants, the County agrees to grant a vested property right for the Project to proceed pursuant to the terms of this agreement. The vesting granted herein shall have a term of three years subject to the provisions for modification and termination contained herein. The Company may request an extension of said vested right.

12. The vested property right granted herein shall be terminated if the County determines that the Company is not in good faith compliance with the terms of the agreement.

13. Subsequent regulations enacted by the County shall be applicable to the Project if necessary to protect the health and safety of the inhabitants of Boulder County or if general in nature and applicable to all properties subject to County land use regulations.

14. If the County adopts a county-wide road impact fee system requiring payment of fees prior to the issuance of building permits, Company shall participate in the appropriate road impact fee fund if, subsequent to adoption of the fee system, any building permits are sought by the Company pursuant to this Agreement.

15. This agreement may be cancelled or amended on the mutual consent of the parties or to bring the proposed development into conformance with federal or state law.

16. The Company's compliance with the terms of this agreement may be enforced by any legal means, including, but not limited to termination of the Company's vested right granted herein, revocation of the Company's approval, denial of building permits or action for breach of contract.

17. The terms and conditions of this agreement shall be covenants which run with the lands and inure to the benefit of and are binding upon the heirs, successors and interests and assigns of the parties hereto.

18. This agreement, upon execution, shall be recorded in the records of the Boulder County Clerk and Recorder.

19. That the operation proceed as described in all commitments made of record as a part of this special review and required reviews and permits.

Southwestern Portland Cement Company assumes corporate responsibility for the execution of all requirements contained in this specific agreement.

Boulder County alone may waive or modify requirements herein. The Company shall file for recording with the Boulder County clerk and recorder this agreement, reduced site plan or any other documents required as part of the approval by the Board of County Commissioners of the above-referenced Project.

SOUTHWESTERN PORTLAND CEMENT COMPANY

By: _____

STATE OF ~~COLORADO~~ Texas JOT)
) ss.
COUNTY OF Harris)

The foregoing was acknowledged before me this 5th day of September, 1989 by J. Brule, Vice President of Southwestern Portland Cement Co. U.S.A. Company, a Delaware corporation, on behalf of such corporation.

Witness my hand and official seal.

My commission expires: 10/09/91

[SEAL]

Lori Van Buskirk
Notary Public

BOUNDER COUNTY:

Josephine W. Heath
CHAIR, BOULDER COUNTY
BOARD OF COUNTY
COMMISSIONERS

Attest:

CLERK OF THE BOARD

frbd:fd4

Holme Roberts & Owen

Attorneys at Law

Suite 400
1401 Pearl Street
Boulder, Colorado 80302
Telephone (303) 444-5955
Telecopier 444-1063
Telex 45-4460

Suite 4100
1700 Lincoln
Denver, Colorado 80203

Suite 400
102 North Cascade Avenue
Colorado Springs, Colorado 80903

Suite 900
50 South Main Street
Salt Lake City, Utah 84144

Denver Technological Center
Suite 900
8400 East Prentice Avenue
Englewood, Colorado 80111

Freya R. Brier

November 22, 1989

Mr. George Matthews
Boulder County Department of Health
3450 Broadway
Boulder, Colorado 80302

Re: Southwestern Portland Cement

Dear Mr. Matthews:

At the request of Gerald Anderson of Southwestern Portland Cement I enclose for your review Southwestern's Emergency Fire Fighting Plan to deal with tire fires at its Lyons, Colorado rubber recycling facility. This report is being presented to you in compliance with the terms of the Site Specific Development Plan between Southwestern and Boulder County.

Please review the enclosed plan and contact me or Mr. Anderson with your comments or questions on or before December 15, 1989. Mr. Anderson can be reached at the Lyons plant, and I can be reached at 444-5955.

Very truly yours,

Freya R. Brier

:frb
Enclosure
cc: Gerald Anderson

Holme Roberts & Owen

Attorneys at Law

Suite 400
1401 Pearl Street
Boulder, Colorado 80302
Telephone (303) 444-5955
Telecopier 444-1063
Telex 45-4460

Suite 4100
1700 Lincoln
...er, Colorado 80203

Suite 400
102 North Cascade Avenue
Colorado Springs, Colorado 80903

Suite 900
50 South Main Street
Salt Lake City, Utah 84144

Denver Technological Center
Suite 900
8400 East Prentice Avenue
Englewood, Colorado 80111

Freya R. Brier

November 27, 1989

RECEIVED
NOV 28 1989
LYONS PLANT

Chief Russell Zweck
Hygiene Fire Department
11007 North 85th Street
Longmont, Colorado 80501

Re: Southwestern Portland Cement Plant
Rubber Recycling Facility

Dear Chief Zweck:

At the request of Gerald Anderson of Southwestern Portland Cement I enclose for your review Southwestern's Emergency Fire Fighting Plan to deal with tire fires at its Lyons, Colorado rubber recycling facility. This report is being presented to you in compliance with the terms of the Site Specific Development Plan between Southwestern and Boulder County.

Please review the enclosed plan and contact me or Mr. Anderson with your comments or questions on or before December 15, 1989. Mr. Anderson can be reached at the Lyons plant, and I can be reached at 444-5955.

Very truly yours,

Freya R. Brier

:frb
Enclosure
cc: Gerald Anderson
George Matthews

Holme Roberts & Owen

Attorneys at Law

Suite 400
1401 Pearl Street
Boulder, Colorado 80302
Telephone (303) 444-5955
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1700 Lincoln
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Colorado Springs, Colorado 80903

Suite 900
50 South Main St
Salt Lake City, Utah

Denver Technological Center
Suite 900
8400 East Prentice Avenue
Englewood, Colorado 80111

Freya R. Brier

November 27, 1989

RECEIVED
NOV 28 1989
LYONS PLANT

Chief Dennis Moe
Lyons Fire Department
P.O. Box 695
Lyons, Colorado 80540

Re: Southwestern Portland Cement Plant
Rubber Recycling Facility

Dear Chief Moe:

At the request of Gerald Anderson of Southwestern Portland Cement I enclose for your review Southwestern's Emergency Fire Fighting Plan to deal with tire fires at its Lyons, Colorado rubber recycling facility. This report is being presented to you in compliance with the terms of the Site Specific Development Plan between Southwestern and Boulder County.

Please review the enclosed plan and contact me or Mr. Anderson with your comments or questions on or before December 15, 1989. Mr. Anderson can be reached at the Lyons plant, and I can be reached at 444-5955.

Very truly yours,

Freya R. Brier

:frb
Enclosure
cc: Gerald Anderson
George Matthews

LYONS RUBBER RECYCLING FACILITY
DOCKET #SU-88-21

SOUTHWESTERN PORTLAND CEMENT COMPANY

EMERGENCY FIRE FIGHTING PLAN

IF A TIRE FIRE SHOULD OCCUR AT THE PLANT, THE FOLLOWING PROCEDURE SHOULD BE FOLLOWED:

THE RESPONSIBILITY FOR MAKING FREQUENT INSPECTIONS OF ALL TIRE STOCKPILES WILL BE THAT OF THE PRODUCTION FOREMAN ON SHIFT.

IMMEDIATELY UPON DETECTION OF A FIRE, THE PRODUCTION FOREMAN WILL BE NOTIFIED. HE WILL IN TURN NOTIFY THE PRODUCTION ENGINEER AND THE PLANT MANAGER.

THE PRODUCTION ENGINEER OR PLANT MANAGER WILL THEN CONTACT THE QUARRY SUPERINTENDENT AND/OR QUARRY SUPERVISOR SO MOBILIZATION OF HEAVY EQUIPMENT WILL TAKE PLACE. FIRST RESPONDER WILL BE THE HYGIENE FIRE DEPARTMENT (441-4444) WITH THE LYONS FIRE DEPARTMENT BEING USED AS BACKUP (823-6085).

IN THE MEANTIME, THE PRODUCTION FOREMAN WILL STAY ON THE SCENE TO PROTECT EQUIPMENT AND MANAGE OPERATIONS.

THE FIRE FIGHTING EFFORTS WILL BE COORDINATED BY THE PLANT MANAGER (BOB T. WEEKS) OR PRODUCTION ENGINEER (STUART E. TOMLINSON) WITH RESPECT TO HEAVY EQUIPMENT, PLANT OPERATING PEOPLE AND THE FIRE DEPARTMENTS.

HEAVY EQUIPMENT LOCATED AT THE PLANT SITE THAT WILL BE UTILIZED IN SMOTHERING A TIRE FIRE ARE AS FOLLOWS:

13 YARD FRONT END LOADER
DOZER
SCRAPER
85 TON HAUL TRUCKS
WATER WAGON

THE FIRE WILL BE SMOTHERED WITH DIRT UTILIZING ABOVE EQUIPMENT.

SELF-CONTAINED BREATHING APPARATUS ARE AVAILABLE AND WILL BE USED BY THE MOBILE EQUIPMENT OPERATORS WHO WOULD BE WORKING CLOSE TO THE FIRE.

SOUTHWESTERN PORTLAND CEMENT COMPANY

SOUTHWEST DIVISION

P.O. BOX 529
LYONS, COLORADO 80540
(303) 823-6685

RECEIVED
JAN 0 8 1990
LAND USE DEPT.

January 5, 1990

Mr. Ken Ziebarth
Boulder County Land Use Department
P. O. Box 471
Boulder, Colorado 80306

RE: Docket #SU-88-21 Lyons Rubber Recycling Facility

Dear Sir:

These certificates of analysis completed by General Engineering Laboratories on our kiln dust is complying with Item #3 of our Boulder County permit requirements.

If you require any further information, please let me know.

Very truly yours,

SOUTHWESTERN PORTLAND CEMENT
A SOUTHDOWN COMPANY

Gerald L. Anderson
Vice President-Projects

GLA:lw
Attachments

SOUTHWESTERN PORTLAND CEMENT COMPANY

SOUTHWEST DIVISION

P.O. BOX 1547
ODESSA, TEXAS 79760
(915) 381-0190

INTER-OFFICE CORRESPONDENCE

RECEIVED
DEC 4 1989
LYONS PLANT

DATE: November 28, 1989

TO: Mr. Gregg Franklin

FROM: D.J. Beech

SUBJECT: Analysis Of Alkalie By-pass Dust Composited During Extended Tire Burning At Lyons

---

Alkalie By-pass dust collected over the period 7/13/89 through 11/1/89 (inclusive), during which we continuously burned a total of 1284.6 tons of shredded tires was composited and sent to General Engineering Laboratories for analysis. Attached is a copy of (1) Total, and (2) EPA Toxicity Analyses of that sample. The persons (and addresses) to whom you should report these analyses are as follows:

Mr. Robert Jorgenson, MPA
Colorado Department of Health
Air Pollution Control Division
4210 East 11th Avenue
Denver, Colorado 80220

Mr. George Mathews
Boulder County Health Department
3450 Broadway
Boulder, Colorado 80302

Mr. Ken Ziebarth
Boulder County Land Use Department
P.O. Box 471
Boulder, Colorado 80306

In time, we will repeat this process on at least two more occasions. This is necessary in order to complete our compliance with "condition 3" of the agreement we have with Boulder County (Docket #SU-88-21 Lyons Rubber Recycling Facility).

Jeff Beech

D.J. Beech
Manager Technical Services
Resource Recovery Operations

cc: Mr. Bob Weeks
Mr. Bob Trujillo

(0593T)

GENERAL ENGINEERING LABORATORIES
Environmental Engineering and Analytical Services

Molly F. Greene
President

George C. Greene, P.E., Ph.D.
Vice President
SC Registration No. 9103

Laboratory Certifications:
FL E87156/87294
NC 233
SC 10120
VA 1
NACIP Approved

CERTIFICATE OF ANALYSIS

Client: SOUTHWESTERN PORTLAND CEMENT CO.
P.O. BOX 529
LYONS , CO 80540

Date: 11/20/89

Contact: MR. NICK BRODIE

Released by: J R Holtslaw
QA/QC Officer

cc/fc: SPLC/TOTM1 Project Manager: Karen A. Kuratnick Page No.: 1

Parameter		
Sample ID	:	ALKALI BYPASS DUST
Lab ID	:	89110572
Sample Matrix	:	SOLID
Date Collected	:	11/06/89
Date Received	:	11/07/89
Collected by	:	SPLC

ARSENIC	25.4 ppm
BARIUM	253 ppm
CADMIUM	25.1 ppm
CHROMIUM	21.7 ppm
LEAD	53.1 ppm
MERCURY	<0.20 ppm
SILVER	<1.00 ppm
SELENIUM	65.6 ppm
NBS DIGESTION	YES
DIGESTION FOR MERCURY ANALYSIS	YES

P. O. Box 30712 • Charleston, SC 29417
Phone (803) 556-8171 • FAX (803) 766-1178

GENERAL ENGINEERING LABORATORIES
Environ. .tal Engineering and Analytical Servic

.lolly F. Greene
President

George C. Greene, P.E., Ph.D.
V[illegible] President
S[illegible] gistration No. 9103

Laboratory Certifications:

FL	E87156/87294
NC	233
SC	10120
VA	00151
NACIP	Approved

CERTIFICATE OF ANALYSIS

Client: SOUTHWESTERN PORTLAND CEMENT CO.
P.O. BOX 529
LYONS , CO 80540

Date: 11/17/89

Contact: MR. NICK BRODIE

Released by: [signature]
QA/QC Officer

cc/fc: SPLC/EPTM4 Project Manager: Karen A. Kuratnick Page No.: 1

Sample ID : ALKALI BYPASS DUST
Lab ID : 89110573
Sample Type : -10
Date Received: 11/07/89
Collected by : SPLC

Parameter	
ARSENIC	<1.00 ppm
BARIUM	<1.00 ppm
CADMIUM	<0.50 ppm
CHROMIUM	<1.00 ppm
LEAD	<1.00 ppm
MERCURY	<0.20 ppm
SELENIUM	<0.50 ppm
SILVER	<1.00 ppm
EP TOX EXTRACTION-SOLID	YES
MERCURY DIGESTION (EP TOX)	YES

P. O. Box 30712 • Charleston, SC 29417
Phone (803) 556-8171 • FAX (803) 766-1178

SOUTHWESTERN PORTLAND CEMENT COMPANY

SOUTHWEST DIVISION

P.O. BOX 529
LYONS, COLORADO 80540
(303) 823-6685

RECEIVED
JAN 23 1990
LAND USE DEPT.

January 22, 1990

Mr. Ken Ziebarth
Boulder County Land Use Department
P. O. Box 471
Boulder, Colorado 80306

SUBJECT: Docket #SU-88-21
Lyons Rubber Recycling Facility

Dear Mr. Ziebarth:

The attached Certificates of Analysis are the results of the second 1500 tons of tire material utilized in the kiln.

This is the second report complying with the Boulder County Permit.

Very truly yours,

SOUTHWESTERN PORTLAND CEMENT
A SOUTHDOWN COMPANY

Gerald L. Anderson
Vice President-Special Projects

GLA:lw
Attachments

cc: Gregg P. Franklin,
General Manager-Resource Recovery Operations

SOUTHWESTERN PORTLAND CEMENT COMPANY

SOUTHWEST DIVISION

P.O. BOX 1547
ODESSA, TEXAS 79760
(915) 381-0190

INTER-OFFICE CORRESPONDENCE

RECEIVED
JAN 19 1990
LYONS PLANT

January 17, 1990

TO: Mr. Gerald Anderson

FROM: D. J. Beech

SUBJECT: Analysis of Alkalie By-Pass Dust Composited on 12/7/89 Concurrent With Stack Testing at Lyons

Alkalie by-pass dust, collected over the same time period that METCO Environmental conducted stack tests (on December 7, 1989), was composited and sent to General Engineering Laboratories for analysis. We were burning shredded tires during this period of sampling and testing. The dust sample in this case represents the burning of 13.7 tons of shredded tires. Attached is a copy of (1) total, and (2) EPA Toxicity Analysis of that sample for what is commonly referred to as the RCRA metals. Please note that the analysis of this alkalie by-pass dust is very similar to an earlier analysis of a Lyons alkalie by-pass dust sample composited over a longer period of time (during which 1284.6 tons of tires were burned). The persons (and addresses) to whom you should report these analyses are as follows:

Mr. Robert Jorgenson, MPA
Colorado Department of Health
Air Pollution Control Division
4210 East 11th Avenue
Denver, Colorado 80220

Mr. George Mathews
Boulder County Health Department
3450 Broadway
Boulder, Colorado 80302

Mr. Ken Ziebarth
Boulder County Land Use Department
P. O. Box 471
Boulder, Colorado 80306

At this time the Lyons kiln is down for winter maintenance. A third alkalie by-pass dust sample has been composited. It represents the time period of November 2, 1989 through January 9, 1990 (inclusive), and some 1650.8 tons of shredded tires burned during that time. I will report that analysis to you as soon as it becomes available. I believe this next analysis will completely fulfill our obligation (with respect to "condition 3" of the agreement with Boulder County entitled Docket #SU-88-21 Lyons Rubber Recycling Facility), once it is available and properly reported to state and county officials.

Jeff Beech

D. J. Beech
Manager Technical Services
Resource Recovery Operations

DJB:cs

cc with attachments: Mr. Gregg Franklin
Mr. Bob Weeks
Mr. Bob Trujillo

GENERAL ENGINEERING LABORATORIES

Environmental Engineering and Analytical Services

Molly F. Greene
President

George C. Greene, P.E., Ph.D.
Vice President
SC Registration No. 9103

Laboratory Certifications:

FL	E87156/87294
NC	233
SC	10120
VA	00151
NACVP	Approved

CERTIFICATE OF ANALYSIS

Client: SOUTHWESTERN PORTLAND CEMENT CO.
P.O. BOX 529
LYONS , CO 80540
Contact: MR. ROBERT TRUJILLO

Date: 01/10/90

Released by: QA/QC Officer

cc/fc: SPLC/EPTM4 Project Manager: Karen A. Kuratnick Page No.: 1

	Sample ID	: #1 ALKALI BY-PASS DUST
	Lab ID	: 89122021
	Sample Matrix	: SOLID
	Date Collected	: 12/07/89
	Date Received	: 12/28/89
	Priority	: Routine
Parameter	Collected by	: SPLC

Parameter	Result
ARSENIC, EP TOX	<1.00 ppm
BARIUM, EP TOX	<1.00 ppm
CADMIUM, EP TOX	<0.50 ppm
CHROMIUM, EP TOX	<1.00 ppm
LEAD, EP TOX	<1.00 ppm
MERCURY, EP TOX	<0.20 ppm
SELENIUM, EP TOX	<0.50 ppm
SILVER, EP TOX	<1.00 ppm
EP TOX EXTRACTION-SOLID	YES
MERCURY DIGESTION (EP TOX)	YES

GENERAL ENGINEERING LABORATORIES

Environmental Engineering and Analytical Services

Molly F. Greene
President

George C. Greene, P.E., Ph.D.
Vice President
SC Registration No. 9103

Laboratory Certifications:

FL	E87156/87294
NC	13
SC	20
VA	00151
NACIP	Approved

CERTIFICATE OF ANALYSIS

Client: SOUTHWESTERN PORTLAND CEMENT CO.
P.O. BOX 529
LYONS , CO 80540

Date: 01/10/90

Contact: MR. ROBERT TRUJILLO

Released by: [signature]
QA/QC Officer

cc/fc: SPLC/TOTM4 Project Manager: Karen A. Kuratnick Page No.: 1

	Sample ID	: #1 ALKALI BY-PASS DUST
	Lab ID	: 89122019
	Sample Matrix	: SOLID
	Date Collected	: 12/07/89
	Date Received	: 12/28/89
	Priority	: Routine
Parameter	Collected by	: SPLC

ARSENIC	<1.00 ppm
BARIUM	288 ppm
CADMIUM	36.5 ppm
CHROMIUM	30.4 ppm
LEAD	96.9 ppm
MERCURY	<0.20 ppm
SELENIUM	48.7 ppm
SILVER	7.02 ppm
DIGESTION FOR MERCURY ANALYSIS	YES
NBS DIGESTION	YES

P.O. Box 30712 • Charleston, SC 29417

SOUTHWESTERN PORTLAND CEMENT COMPANY

SOUTHWEST DIVISION

P.O. BOX 529
LYONS, COLORADO 80540
(303) 823-6685

March 6, 1990

RECEIVED
MAR 08 1990
LAND USE DEPT.

Mr. Ken Ziebarth
Boulder County Land Use Department
P. O. Box 471
Boulder, Colorado 80306

Dear Mr. Ziebarth:

Please refer to the letter of Mr. D. J. Beech from our Corporate office and the Certificate of Analysis from General Engineering Laboratories.

We feel that we have met the requirements of the Boulder County Permit Docket #SU-88-21, item number three, regarding the analyses of the kiln dust.

If you need any further information, please call me.

Sincerely yours,

SOUTHWESTERN PORTLAND CEMENT
A SOUTHDOWN COMPANY

G. L. Anderson
Vice President-Special Projects

GLA:lw
Attachment

cc: G. P. Franklin
D. J. Beech

Inter-office Correspondence

MAR - 5 1990

LYONS PLANT

TO: Gerald Anderson

FROM: D.J. Beech DJB

DATE: March 1, 1990

SUBJECT: **Analysis of Alkali By-Pass Dust Composited During Extended Tire Burning At Lyons**

Alkali by-pass dust collected over the period 11/2/89 through 1/9/90, during which we continuously burned a total of 1650.8 tons of shredded tires, was composited and sent to General Engineering Laboratories for analysis. Attached is a copy of (1) the total content of RCRA toxic metals, and (2) the RCRA EP toxicity analysis of this sample. The persons (and addressees) to whom you should report these analyses are as follows:

Mr. Robert Jorgenson, MPA
Colorado Department of Health
Air Pollution Control Division
4210 East 11th Avenue
Denver, Colorado 80220

Mr. George Mathews
Boulder County Health Department
3450 Broadway
Boulder, Colorado 80302

Mr. Ken Ziebarth
Boulder County Land Use Department
P.O. Box 471
Boulder, Colorado 80306

Our obligation to perform RCRA EPA toxicity analyses and analysis for toxic trace elements while burning tires was indicated to us in a correspondence from the Boulder County Land Use Department (dated May 30, 1989). This action may be further identified by its reference to "Docket #SU-88-21 Lyons Rubber Recycling Facility". Condition Number 3 of this document refers specifically to dust analysis, a copy of which follows:

3. "That RCRA EPA toxicity analyses, and analysis for toxic trace elements, of the kiln dust shall be performed for each 1,500 tons of tire material utilized during the first three months and for each 3,000 tons of material utilized in the following four months. A minimum of three separate such analyses shall be provided within the first seven months of operation. These results shall be reported to the Boulder County Land Use and Health Departments and to the State Health Department".

Since we began burning tires we have composited alkali by-pass dust and performed the prescribed analyses on three occasions, including this report. The first set of analyses covered the period from 7/13/89 through 11/1/89, during which time we burned a total of 1284.6 tons of shredded tires. The second set of dust analyses corresponded to the time frame over which METCO Environmental conducted stack emissions tests for us, on 12/7/89, and represented 13.7 tons of shredded tires burned. This third report of analyses refers to dust composited from 11/2/89 through 1/9/90, and represents the burning of 1650.8 tons of tires burned. Please make it known to the State and County officials we are reporting this information to that we think we have, with submission of this latest report, completed our obligation to report the analyses of alkali by-pass kiln dust as outlined in Condition 3. If we are mistaken in this regard, we need to be informed of what further dust analyses need be performed and reported.

/cjb

Attachment

cc: G.P. Franklin
Bob Weeks
Bob Trujillo

GENERAL ENGINEERING LABORATORIES

Environmental Engineering and Analytical Services

Molly F. Greene
President

George C. Greene, P.E., Ph.D.
Vice President
SC Registration No. 9103

Laboratory Certifications:

FL	E87156/8729
NC	23
SC	1012
VA	0015
NACIP	Approved

CERTIFICATE OF ANALYSIS

Client: SOUTHWESTERN PORTLAND CEMENT CO.
P.O. BOX 529
LYONS , CO 80540

Date: 01/30/90

Contact: MR. ROBERT TRUJILLO

Released by: _____
QA/QC Officer

cc/fc: SPLC/TOTM4 Project Manager: Winter A. Seibert Page No.: 1

Sample ID	:	ALKALI BYPASS DUST
Lab ID	:	90011448
Sample Matrix	:	SOLID
Date Collected	:	01/09/90
Date Received	:	01/17/90
Priority	:	Routine
Collected by	:	SPLC

Parameter	
ARSENIC	17.5 ppm
BARIUM	135 ppm
CADMIUM	29.4 ppm
CHROMIUM	18.0 ppm
LEAD	63.2 ppm
MERCURY	<0.20 ppm
SELENIUM	57.1 ppm
SILVER	1.62 ppm
DIGESTION FOR MERCURY ANALYSIS	YES
NBS DIGESTION	YES

P. O. Box 30712 • Charleston, SC 29417
Phone (803) 556-8171 • FAX (803) 766-1178

GENERAL ENGINEERING LABORATORIES

Environmental Engineering and Analytical Services

Molly F. Greene
President

George C. Greene, P.E., Ph.D.
Vice President
SC Registration No. 9103

Laboratory Certifications:

FL	E87156/87294
NC	233
SC	10120
VA	00151
NACIP	Approved

CERTIFICATE OF ANALYSIS

Client: SOUTHWESTERN PORTLAND CEMENT CO.
P.O. BOX 529
LYONS , CO 80540

Date: 01/30/90

Contact: MR. ROBERT TRUJILLO

Released by: _____
QA/QC Officer

cc/fc: SPLC/EPTM4 Project Manager: Winter A. Seibert Page No.: 1

3RD SET

Sample ID	:	ALKALI BYPASS DUST
Lab ID	:	90011447
Sample Matrix	:	SOLID
Date Collected	:	01/09/90
Date Received	:	01/17/90
Priority	:	Routine
Collected by	:	SPLC

Parameter	
ARSENIC, EP TOX	<1.00 ppm
BARIUM, EP TOX	<1.00 ppm
CADMIUM, EP TOX	<0.50 ppm
CHROMIUM, EP TOX	<1.00 ppm
LEAD, EP TOX	<1.00 ppm
MERCURY, EP TOX	<0.20 ppm
SELENIUM, EP TOX	<0.50 ppm
SILVER, EP TOX	<1.00 ppm
EP TOX EXTRACTION-SOLID	YES
MERCURY DIGESTION (EP TOX)	YES

RESOLUTION 90-59

A RESOLUTION CONDITIONALLY APPROVING BOULDER COUNTY LAND USE DOCKET #SU-88-21 ("LYONS RUBBER RECYCLING FACILITY"): A SPECIAL USE, SITE SPECIFIC DEVELOPMENT PLAN, AND SOLID WASTES DISPOSAL SITE CERTIFICATE OF DESIGNATION REQUEST, FOR A RUBBER RECYCLING FACILITY LOCATED ONE-QUARTER MILE SOUTH OF COLORADO HIGHWAY 66, AND ONE MILE EAST OF U.S. HIGHWAY 36, IN SECTIONS 21 and 28, T3N, R70W.

WHEREAS, the Southwest Portland Cement Company ("Applicant") has requested approval for a special use permit under Article 20 of the Boulder County Zoning Resolution, a site specific development plan under Article 19 of the Zoning Resolution, and a certificate of designation under the Solid Wastes Disposal Sites and Facilities Act (C.R.S. Sections 30-20-101, et. seq.), for a rubber recycling facility to use discarded tires as fuel in the manufacture of cement at Applicant's plant, which is located on the property described in the caption to this Resolution, above ("the Subject Property"), in the Existing General Industrial, with Floodplain Overlay, Zoning District, in unincorporated Boulder County; and

WHEREAS, the above-described request was processed and reviewed as Boulder County Land Use Docket #SU-88-21 ("the Docket"), all as further described in the Boulder County Land Use Department Planning Staff's Memorandum and written recommendation to the Boulder County Board of County Commissioners ("the Board") dated May 30, 1989, with its attachments ("the Staff Recommendation"); and

WHEREAS, on April 19, 1989, the Boulder County Planning Commission ("the Planning Commission") held a duly-noticed public hearing on the Docket, and recommended conditional approval of the Docket to the Board; and

WHEREAS, the Waste Management Division of the Colorado Department of Health recommended approval of the Docket, subject to conditions which were included in the Staff Recommendation; and

WHEREAS, on May 30, 1989, the Board held a duly-noticed public hearing on the Docket ("the Public Hearing"), at which time the Board considered the Staff Recommendation and the recommendation of the Planning Commission, and also considered documents and testimony presented by the County Land Use Department Planning Staff, as well as by a representative of the Boulder County Health Department; Gerald Anderson, Lyons Cement Plant Manager, on behalf of Applicant; LaVern Johnson, Trustee of the Town of Lyons; and a member of the public; and

WHEREAS, based on the Public Hearing, the Board finds as follows:

1. The Docket meets the criteria for special use approval set forth in Article 20-301 of the Boulder County Zoning

EXHIBIT
tabbies
D

Resolution, and for a solid wastes disposal site and facility certificate of designation under Section 30-20-104, C.R.S., subject to the following conditions:

A. That Applicant obtain its revised Colorado Air Pollution Emission Permit before beginning to accept or burn shredded or whole tires.

B. That starting on August 1, 1989, and on August 1 of each subsequent year, an annual report will be submitted to the Boulder County Land Use and Health Departments and the Colorado Department of Health. This report shall indicate on a monthly basis and annual total, the weight of whole and shredded tires received, the weight of whole tires shredded, the weight of whole and shredded tires utilized in the kiln, and the weight of whole and shredded tires in storage.

C. That RCRA EPA toxicity analyses, and analysis for toxic trace elements, of the kiln dust shall be performed for each 1,500 tons of tire material utilized during the first three months and for each 3,000 tons of material utilized in the following four months. A minimum of three separate such analyses shall be provided within the first seven months of operation. These results shall be reported to the Boulder County Land Use and Health Departments and to the Colorado Health Department.

D. That mosquito and other vector control programs approved by the Boulder County Health Department be instituted as necessary to ensure that the tire storage areas do not increase area vector populations.

E. That Applicant develop and implement a tire fire coordination program with the Lyons and Hygiene Fire Departments prior to bringing tires to the site. This program should identify the personnel, equipment, materials, and sequence of events that will be used to fight a tire fire. All identified personnel should be trained in the program. A report detailing the program shall be submitted to the Boulder County Land Use and Health Departments and to the Colorado Health Department.

F. That surface runoff will be diverted away from the shredded and whole tire storage areas.

G. That within three months of closure of the kiln, all remaining tires will be either recycled or properly disposed of.

H. That any required Floodplain Development Permit be approved by the Boulder County Public Works Department.

I. That a report be made to the Planning Commission and

Board of County Commissioners of the results of an inspection of the operation made after one year of operation.

J. That the operation proceed as described in all commitments made of record as a part of this Special Review and other required reviews and permits.

2. The Docket meets the criteria for approval of a site specific development plan set forth in Article 19-301 of the Boulder County Zoning Resolution, subject to the conditions stated above.

NOW, THEREFORE, BE IT RESOLVED that the Docket is hereby conditionally approved, on the basis and terms set forth in this Resolution, above.

A motion to approve the Docket, as stated above, was made by Commissioner Page, seconded by Commissioner Stewart, and passed by a 3-0 vote.

ADOPTED this 1st day of Feb., 1990, nunc pro tunc the 30th day of May, 1989.

BOARD OF COUNTY COMMISSIONERS OF BOULDER COUNTY:

Ronald K. Stewart

Ronald K. Stewart, Chair

Homer Page

Homer Page, Vice Chair

Josephine W. Heath

Josephine W. Heath

ATTEST:

Clerk to the Board

SOUTHWESTERN PORTLAND CEMENT COMPANY

SOUTHWEST DIVISION

P.O. BOX 529
LYONS, COLORADO 80540
(303) 823-6685

RECEIVED
AUG 03 1990
LAND USE DEPT.

August 1, 1990

Mr. Ken Ziebarth
Boulder County Land Use Department
P. O. Box 471
Boulder, Colorado 80306

Re: Docket #SU-88-21
Lyons Rubber Recycling Facility

Dear Mr. Ziebarth:

Attached is our report on tires (all shredded material); i.e., received, burned and stored.

This report is complying with Item Number Two of our Boulder County, Special Use Site Specific Development Plan, and Certificate of Designation for Solid Waste Disposal Site to receive tires as fuel for cement manufacture.

This is our first annual report. If you have any questions about this report, please call me.

Very truly yours,

SOUTHWESTERN PORTLAND CEMENT

Gerald L. Anderson

Gerald L. Anderson
Vice President-Special Projects

GLA;lw
Attachment

cc: B. T. Weeks
G. P. Franklin

TIRES BURNED LYONS

DATE	DESCRIPTION	INVENTORY TONS	TONS PURCHASED MONTH	BURNED TONS MONTH	Y.T.D. TONS BURNED
1989					
	TEST BURN	0.00	341.93	264.17	264.17
OCTOBER		77.76	1204.41	1144.17	1408.34
NOVEMBER		138.00	1130.86	1118.86	2527.20
DECEMBER		150.00	788.87	473.87	3001.07
1990					
JANUARY, 1990		465.00	0.00	465.00	465.00
FEBUARY		0.00	194.45	10.50	475.50
MARCH		184.45	1019.32	983.77	1459.27
APRIL		220.00	804.57	885.57	2344.84
MAY		139.00	952.68	676.00	3020.84
JUNE		415.68	730.50	926.18	3947.02
JULY		220.00	272.77	282.77	4229.79
UGUST		210.00			4229.79

File 28-2

SOUTHWESTERN PORTLAND CEMENT COMPANY

SOUTHWEST DIVISION

P.O. BOX 529
LYONS, COLORADO 80540
(303) 823-6685

Aug 1991

Mr. Robert Jorgenson, MPA
Colorado Department of Health
Air Pollution Control Division
4210 East 11th Avenue
Denver, CO 80220

Dear Mr. Jorgenson;

In compliance with the Certificate of Designation for Solid Waste Disposal Site concerning the use of tires as a fuel, the attached report is submitted. This report shows the tons of tires purchased, burned and on inventory since the test burn of 1989.

If you have any questions regarding this report, please let me know.

Southwestern Portland Cement

Marvin L. Berg
Quarry Superintendent

cc: Diane Niemiec
Ken Ziebarth

TIRES BURNED LYONS

DATE	DESCRIPTION	INVENTORY TONS	TONS PURCHASED MONTH	BURNED TONS MONTH	Y.T.D. TONS BURNED	TOTAL TONS BURNED
1989						
	TEST BURN		341.93	264.17	264.17	
OCTOBER		77.76	1204.41	1144.17	1408.34	
NOVEMBER		138.00	1130.86	1118.86	2527.20	
DECEMBER		150.00	788.87	473.87	3001.07	3001.07
1990						
JANUARY,	1990	465.00		465.00	465.00	3466.07
FEBUARY			194.45	10.50	475.50	3476.57
MARCH		184.45	1019.32	983.77	1459.27	4460.34
APRIL		220.00	804.57	885.57	2344.84	5345.91
MAY		139.00	952.68	676.00	3020.84	6021.91
JUNE		415.68	730.50	926.18	3947.02	6948.09
JULY		220.00	272.77	282.77	4229.79	7230.86
AUGUST		210.00	522.23	438.23	4668.02	7669.09
SEPTEMBER		294.00	266.11	534.00	5202.02	8203.09
OCTOBER		26.00	378.68	336.68	5538.70	8539.77
NOVEMBER		68.00	470.50	306.00	5844.70	8845.77
DECEMBER		232.50	240.00	337.50	6182.20	9183.27
1991						
JANUARY,	1991	135.00	148.52	167.00	167.00	9350.27
FEBRUARY		116.52	445.08	411.00	578.00	9761.27
MARCH		150.60	476.67	402.27	980.27	10163.54
APRIL		225.00	225.74	286.00	1266.27	10449.54
MAY		164.74	279.42	204.16	1470.43	10653.70
JUNE		240.00	180.47	92.00	1562.43	10745.70
JULY		328.47		257.77	1820.20	11003.47
AUGUST		70.70				110[illegible].47

Southwestern Portland Cement
A Southdown Company

January 12, 1993

Mr. Lee D. Phipps
Environmental Health Specialist
BOULDER COUNTY HEALTH DEPARTMENT
3450 Broadway
Boulder, CO 80302

Dear Mr. Phipps:

We are submitting the attached table pursuant to our permit requirement to furnish annual reports on tire utilization.

Attached please find monthly totals for tires purchased, burned (used) and on inventory for the period from September 1991 to September 1992. If further information is required, please let me know.

Sincerely yours,

Randy Wiley
Production Manager

RW:cm

Attachment

L015.rw

P.O. Box 529 • Lyons, Colorado 80540
(303) 823-6685 • Fax: (303) 443-5887

Recycled paper

Following is a table showing the total tons of tires burned, purchased and on inventory at Southwestern Portland Cements Lyons facility.

	BEGINNING BALANCE	PURCHASED	USED	END BALANCE
AUG. 1991				136
SEPT.	136	0	136	0
OCT.	0	237	227	10
NOV.	10	246	119	137
DEC.	137	197	94	240
JAN. 1992	240	0	56	184
FEB.	184	0	0	184
MARCH	184	0	0	184
APRIL	184	0	0	184
MAY	184	0	0	184
JUNE	184	0	0	184
JULY	184	0	52	132
AUG.	132	0	0	132

Southwestern Portland Cement
A Southdown Company

January 12, 1993

Mr. Tom Tistinic
Public Health Engineer
COLORADO DEPARTMENT OF HEALTH
APCD-SS-B1
4300 Cherry Creek Drive South
Denver, CO 80222-1530

Dear Mr. Tistinic:

We are submitting the attached table pursuant to our permit requirement to furnish annual reports on tire utilization.

Attached please find monthly totals for tires purchased, burned (used) and on inventory for the period from September 1991 to September 1992. If further information is required, please let me know.

Sincerely yours,

R. L. Wiley

Randy Wiley
Production Manager

RW:cm

Attachment

L015.rw

P.O. Box 529 • Lyons, Colorado 80540
(303) 823-6685 • Fax: (303) 443-5887

Recycled paper

Southwestern Portland Cement
A Southdown Company

January 12, 1993

Mr. Ken Ziebarth
Boulder County
Land Use Department
Planning Division
P.O. Box 471
Boulder, CO 80306

Dear Mr. Ziebarth:

We are submitting the attached table pursuant to our permit requirement to furnish annual reports on tire utilization.

Attached please find monthly totals for tires purchased, burned (used) and on inventory for the period from September 1991 to September 1992. If further information is required, please let me know.

Sincerely yours,

R S Wiley

Randy Wiley
Production Manager

RW:cm

Attachment

L015.rw

P.O. Box 529 • Lyons, Colorado 80540
(303) 823-6685 • Fax: (303) 443-5887

Recycled paper

Attach. Tire Recycling 1-88-21

Southwestern Portland Cement
A Southdown Company

RECEIVED
SEP 13 1993
LAND USE DEPT.

September 9, 1993

Mr. Ken Ziebarth
Boulder County Land Use Department
Administrative Services Building
2040 14th. Street
Boulder, CO 80302

Dear Mr. Ziebarth:

We are submitting the attached table pursuant to our permit requirement to furnish annual reports on tire utilization.

Attached please find monthly totals for tires purchased, burned (used) and on inventory for the period from September 1992 to September 1993. If further information is required please let me know.

Very truly yours,
Southwestern Portland Cement Company

Randy Wiley
RW/sm

P.O. Box 529 • Lyons, Colorado 80540
(303) 823-6685 • Fax: (303) 443-5887

Following is a table showing the total tons of tires burned, purchased and on inventory for the period from Aug. 1, 1992 to Aug. 31, 1993 at Southwestern Portland Cements Lyons facility.

	BEGINNING BALANCE	PURCHASED	USED	END BALANCE
AUG. 1992				132
SEPT.	132	0	0	132
OCT.	132	0	0	132
NOV.	132	0	0	132
DEC.	132	0	0	132
JAN. 1993	132	0	0	132
FEB.	132	0	0	132
MARCH	132	0	0	132
APRIL	132	0	0	132
MAY	132	0	0	132
JUNE	132	0	0	132
JULY	132	0	0	132
AUG.	132	0	0	132

STATE OF COLORADO

COLORADO DEPARTMENT OF HEALTH
AIR POLLUTION CONTROL DIVISION
TELEPHONE: (303) 692-3150

CONSTRUCTION PERMIT

PERMIT NO: 12BO444-2

FINAL APPROVAL

DATE ISSUED: DECEMBER 17, 1993

ISSUED TO: SOUTHDOWN, INC. d/b/a Southwestern Portland Cement Co

THE SOURCE TO WHICH THIS PERMIT APPLIES IS DESCRIBED AND LOCATED AS FOLLOWS:

Manufacturer of Portland Cement located two miles southeast of Lyons, Boulder County, Colorado.

THE SPECIFIC EQUIPMENT OR ACTIVITY SUBJECT TO THIS PERMIT INCLUDES THE FOLLOWING:

Rotary kiln with flash calciner and the clinker cooler, vented to three (3) baghouses. Permitted fuels consist of natural gas, coal and/or used tires. Used tires may be fed whole or shredded. This source is subject to the provisions of the New Source Performance Standards for Portland Cement Plants, Regulation No. 6, Section IV.

THIS PERMIT IS GRANTED SUBJECT TO ALL RULES AND REGULATIONS OF THE COLORADO AIR QUALITY CONTROL COMMISSION AND THE COLORADO AIR QUALITY CONTROL ACT C.R.S. (25-7-101) et seq), TO THOSE GENERAL TERMS AND CONDITIONS SET FORTH ON THE REVERSE SIDE OF THIS DOCUMENT AND THE FOLLOWING SPECIFIC TERMS AND CONDITIONS:

1. Annual operating hours for this kiln are not to exceed 8064 and records of operating hours shall be maintained.

2. Emissions of NO_x, SO_2, VOC, CO in the kiln stack shall be monitored on a continuous basis using a certified CEM. Proper installation, certification and operation of the CEM's shall include annual certification and quarterly audits of the calibration gasses.

SOUTHDOWN, INC.
Permit No. 12BO444-2
Final Approval
Page 2

3. Mass emission rates in pounds per hour, on a thirty-day rolling average basis, are not to exceed the values shown below. The annual emissions are calculated on the basis of 8064 hours of operation per year.

POLLUTANT	PPM	DSCFM	LB/HR	TPY
NO_x	550	166610	656.9	2649
SO_2	200	166610	332.3	1340
VOC	30	166610	34.3	138
CO	135	166610	98.1	396
PM_{10}			33.0	133
Pb			10.8	43.6
TSP			33.0	133

The above emission estimates are based on worst case CEM data with the exception of lead which is estimated using emission factors from AP-42 Table 8.6-1, and TSP which is based on NSPS allowable of 0.3 lb/ton of feed (dry basis) and an average feed rate of 110 tons/hour. PM_{10} is assumed to be the same as TSP. The actual hourly averages of the kiln feed and fuel consumption rates, shown below are not intended to establish limits on the operation of the kiln, but are the basis for the stated emission limits.

Description	Units	Hourly Ave.	Hourly Max.	Annual
New Kiln Feed (Dry)	Tons	110	120	887040
Heat Input	MMBTU	325	340	2.62×10^6
100% Coal	Tons	14.13	14.84	113945
100% Natural Gas	SCF	302325	317440	2438×10^6
Whole or Shredded (Tires)	Tons	2.28	2.50	18400

4. Compliance with annual limits for NO_x, SO_2, VOC, CO shall be determined on a rolling twelve (12) month total. On the first day of each month a new twelve month total is calculated using the previous twelve months' data. The permit holder shall calculate monthly emissions and keep a compliance record on site for Division review.

5. A Revised Air Pollutant Emission Notice shall be filed when a significant change in emissions occurs, as required by Regulation No. 3.

13/3/9

12. This source is subject to Regulation No. I Section VI.3.f. which limits SO_2 emission to 7 lbs per ton of material (including fuel) processed.

By: _____
Thomas M. Tistinic
Permit Engineer/Reviewer

By: _____
James S. Geier, P.E., Chief
New Source Review Section
Stationary Sources Program
Air Pollution Control Division

Date of original issue: 10/18/79 Modification of a Grandfather source
1st Modification: 6/22/89 To allow combustion of tires
2nd Modification: 12/17/93 Update permit based on CEM data

CLOSURE PLAN

TIRE RECYCLING FACILITY

SOUTHDOWN, INC.
d/b/a SOUTHWESTERN PORTLAND CEMENT
LYONS, COLORADO

March 1995



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1.0 INTRODUCTION

Southdown, Inc. d/b/a Southwestern Portland Cement ("Southdown") operates a portland cement manufacturing facility in Lyons, Colorado. The facility includes an industrial furnace (rotary cement kiln) which has in part been used to recover energy from tires. Southdown began burning tires in the cement kiln in June 1989. Since that time, Southdown has burned approximately 155,000 tons of coal, and approximately 2,585,000 gallons of fuel oil. Since 1990, the facility's primary fuels have consisted of coal and natural gas. A total of 11,000 tons of tires have been burned since June 1989.

The Southdown facility has been issued a Certificate of Designation for a Solid Waste Disposal Site for its tire burning activities. In addition to allowing the use of tires as fuel, the Certificate of Designation allows Southdown to store shredded and whole tires at its facility prior to their use as fuel. Shredded tires may be stored in an area no larger than 100 feet by 50 feet with a height of 13 feet. Whole tires may be stored in two piles having approximate dimensions of 75 feet by 75 feet by 13 feet high.

The purpose of preparing this plan is to ensure that the Southdown tire burning and storage units are closed in a manner which minimizes the need for further maintenance. In addition, closure activities shall be conducted so as to eliminate, to the extent necessary to protect human health and the environment, the post-closure escape of hazardous constituents to the environment from tire management units. Specifically, this Closure Plan addresses the closure procedures for the tire management units at Southdown which consists of the cement kiln and the three (3) storage units.

2.0 FACILITY DESCRIPTION

Closure of the tire management units include closing the cement kiln and the three (3) tire storage units. Each unit is described below.

2.1 CEMENT KILN

The cement kiln utilized at the Southdown facility is a dry process, pre-heater/pre-calciner kiln which was placed into service in 1981. The kiln has a 14.25 foot diameter and is 244 foot long and has been utilized in part to recover energy from tires.

2.2 TIRE STORAGE UNITS

2.2.1 Shredded Tire Storage Unit

The shredded tire storage unit consists of an eight-inch thick concrete pad located adjacent to the kiln's preheater. The unit covers an approximate area of 100 feet by 50 feet. Shredded tires may be stored as high as 13 feet.

2.2.2 Whole Tire Storage Units

Two (2) whole tire storage units are located south of the primary crusher in the raw material storage area. Each unit has a base of compacted clay that is 15 - 20 feet thick. Each of the whole tire storage unit covers an approximate area of 75 feet by 75 feet. Whole tires may be stored as high as 13 feet high.

3.0 WASTE DESCRIPTION

The waste managed in the cement kiln and storage units consists of shredded and whole tires.

4.0 CLOSURE PROCEDURES

The following subsections provide information on how all units will be decontaminated and/or disposed of during the closure process.

4.1 CEMENT KILN

Southdown believes that normal operation of the cement kiln will adequately decontaminate the unit for closure purposes. Specifically, operations involving the kiln virtually assure that all constituents attributable to tires will be destroyed or removed from the kiln through normal operations.

The Southdown cement kiln operates in a process material temperature range of 1800 to 2800 degrees Fahrenheit. Actual combustion gas temperatures are approximately 3500 degrees Fahrenheit, which will destroy virtually all organic constituents attributable to tires at the time the tires are burned. In addition, any metals associated with the burning of fossil or tire fuel are molecularly bound into the cement product (clinker) and the cement kiln dust. Hence, any metal constituents attributable to the tires burned at the Southdown cement kiln will likely exit the kiln at the time the tires are burned.

4.2 TIRE STORAGE UNITS

4.2.1 Shredded Tire Storage Unit

The closure of the shredded tire storage unit will include the following steps:

* Removal and disposal of residual shredded tires
* Sweeping of the concrete pad
* Removal and disposal of sweepings
* Visual inspection of concrete pad

4.2.2 Whole Tire Storage Units

The closure of the two (2) whole tire storage units will include the following steps:

* Removal and disposal of residual whole tires
* Visual inspection of the units

4.3 VISUAL INSPECTION OF EACH UNIT

A Colorado registered professional engineer will observe closure activities, review field records, and/or interview personnel to determine whether the closure procedures specified in Sections 4.1 and 4.2 were followed.

At final closure of the facility, the Colorado registered professional engineer will visually inspect the cement kiln and the three (3) tire storage units for visible signs of residual tires and parts of tires. The Colorado registered professional engineer will include the findings of the inspection in a certification, which will be included as part of the final report specified in Section 8.0 of this Closure Plan.

4.4 SAFETY

All personnel performing activities associated with the closure of the cement kiln and tire storage units will be provided with the appropriate safety equipment. All closure activities will be performed in accordance with health and safety standards specified in the Mine Safety and Health Administration (MSHA) regulations (30 Code of Federal Regulations Parts 1 through 199).

5.0 NOTIFICATION OF CLOSURE ACTIVITIES

Notification of closure of the cement kiln (relevant to tire burning activities) and the tire storage units will be provided in writing to the Colorado Department of Public Health (the

"Department") and the governing body having jurisdiction at least sixty (60) days in advance of the closure date.

6.0 CLOSURE SCHEDULE

The closure schedule for closure of the cement kiln and the tire storage units is summarized in Table 6-1. For each step, the number of days specified represents the maximum time expected to be required to complete the task. Based on a five day work week, the estimated completion of all closure activities will require approximately 16 weeks. Southdown does not anticipate that the time to complete closure of these units will exceed 180 days. This schedule does not account for any delays which may be caused by force majeure, including without limitations, fires, floods, riots, or strikes. If any unforeseen circumstances occur, Southdown will submit a written request to the Department and the governing body having jurisdiction to extend the time allowed for closure.

7.0 CLOSURE COST ESTIMATE

The closure cost estimate for the cement kiln and the tire storage areas is included as Table 7-1. This estimate is based upon Southdown hiring a third party to close the facility. In addition, the cost estimate equals the cost of closing the largest area requiring closure during the active life of the site when the extent and manner of its operation would make closure the most expensive. The total cost estimate is $39,544.

8.0 CLOSURE CERTIFICATION

Within 60 days of the completion of final closure, Southdown will submit to the Department and the governing body having jurisdiction, by registered mail, a certification that the tire management units have been closed in accordance with the specifications in the approved Closure Plan. The certification and report will be signed by a Colorado

registered professional engineer. The report will include a summary of the closure activities performed, including the following:

- Copies of any pictures taken during the closure;
- Copies of the daily logs; and
- Results of visual inspections.

The report will be filed within the 60 days of completion of closure.

TABLE 6-1

PROJECTED SCHEDULE OF CLOSURE ACTIVITIES

TABLE 6-1

PROJECTED SCHEDULE OF CLOSURE ACTIVITIES*

CLOSURE ACTIVITY	DAY STARTED	DAY COMPLETED
Removal of Shredded and Whole Tires from the Tire Storage Areas	Day 1	Day 20
Sweeping of Concrete Pad at Shredded Tire Storage Area	Day 20	Day 20
Inspection of Cement Kiln and Tire Storage Areas	Day 20	Day 25
Completion of Closure and Certification Submitted to the Department and Governing Body Having Jurisdiction	Day 25	Day 80

* Subject to Change, but not to exceed 180 days.

TABLE 7-1

CLOSURE COST ESTIMATE

TABLE 7-1

CLOSURE COST ESTIMATE

I.	DECONTAMINATION OF THE TIRE STORAGE UNITS	
a.	Disposal of 635 cubic yards of shredded tires (based on the volume of a cone with a radius of 35.5' and a height of 13' and a conversion factor of 24#/ft^3) Cost: $15/ton	$3,086
b.	Disposal of 1418 cubic yards of whole tires (based on the volume of two cones, each with a radius of 37.5' and a height of 13' and a conversion factor of 8 tires/yd^3) Cost: $ 0.75/tire	$8,448
c.	Disposal of 5 cubic yards of sweepings Cost: $22.86 per cubic yard	$115
d.	Transportation: (assumes 40 cy/truck and 3 hr/truck) Cost: 159 hours @ $50/hr	$7,800
e.	Equipment Rental (for loading trucks) Cost: $435/day for 20 days	$8,700
f.	Labor	
	1. Supervisory - 160 hrs @ $25	$4,000
	2. Hourly - 160 hours @ $15	$2,400
	SUBTOTAL	$34,549
II.	UNIT DECONTAMINATION	
	Inspection by Professional Engineer 5 Hrs per Unit, 4 units - 20 hrs @ $70 per hr	$1,400
	SUBTOTAL	$1,400
	TOTAL COSTS	$35,949
	10% CONTINGENCY	$3,595
	TOTAL CLOSURE COSTS	**$39,544**
	Adjustment for Inflation - 3/96 Based on Implicit Price Deflator for GDP	x 1.024
		$40,493
	Adjustment for Inflation - 3/97 Based on Implicit Price Deflator for GDP	x 1.02
		$41,303

March 1995
Revised March 1996, March 1997

Maureen Jacoby

From: "MIRA Neumiller" <Mira.Neumiller@state.co.us>
To: <mjacoby@banksandgesso.com>
Sent: Tuesday, April 01, 2003 3:33 PM
Attach: Cemex96-02.doc
Subject: Cemex HSRF Request

Maureen,
Attached is HSRF printscreens from the SWMS database.
Let me know if you need more information.

Mira Neumiller
Compliance Program Specialist
Colorado Department of Public Health and Environment
Hazardous Materials and Waste Management Division
(303) 692-3350
mira.neumiller@state.co.us

CEMEX submitted HSRF (Hazardous Substance Report Fund) Quarterly Reports starting Jan. 23, 1996 — present time.

SWMgmtSys - [Volume Report - CEMEX INC.]

Action Facil Reports Window Help

Year 1995 System Computations

Date Reported 04/30/1996 07/01/1996 10/01/1996 01/23/1996

	Quarter 1		Quarter 2		Quarter 3		Quarter 4	
Type	Volume	Dollars	Volume	Dollars	Volume	Dollars	Volume	Dollars
CY	0	$0.00	0	$0.00	0	$0.00	0	$0.00

Fee Submitted	$0.00	$0.00	$0.00	$0.00
Fee Adjusted	$0.00	$0.00	$0.00	$0.00
Admin	$0.00	$0.00	$0.00	$0.00
Fine	$0.00	$0.00	$0.00	$0.00
Should be**	$0.00	$0.00	$0.00	$0.00
Difference	$0.00	$0.00	$0.00	$0.00
Comments				

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Year 1996 System Computations

Date Reported 04/30/1996 07/01/1996 10/01/1996 01/02/1997

	Quarter 1		Quarter 2		Quarter 3		Quarter 4	
Type	Volume	Dollars	Volume	Dollars	Volume	Dollars	Volume	Dollars
CY	0	$0.00	0	$0.00	0	$0.00	0	$0.00

Fee Submitted	$0.00	$0.00	$0.00	$0.00
Fee Adjusted	$0.00	$0.00	$0.00	$0.00
Admin	$0.00	$0.00	$0.00	$0.00
Fine	$0.00	$0.00	$0.00	$0.00
Should be**	$0.00	$0.00	$0.00	$0.00
Difference	$0.00	$0.00	$0.00	$0.00
Comments				

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Year 1997 System Computations ☑

Date Reported ☑ 04/07/1997 ☑ 07/09/1997 ☑ 10/13/1997 ☑ 01/12/1998

	Quarter 1		Quarter 2		Quarter 3		Quarter 4	
Type	Volume	Dollars	Volume	Dollars	Volume	Dollars	Volume	Dollars
CY	0	$0.00	0	$0.00	0	$0.00	0	$0.00

Fee Submitted	$0.00	$0.00	$0.00	$0.00
Fee Adjusted	$0.00	$0.00	$0.00	$0.00
Admin	$0.00	$0.00	$0.00	$0.00
Fine	$0.00	$0.00	$0.00	$0.00
Should be**	$0.00	$0.00	$0.00	$0.00
Difference	$0.00	$0.00	$0.00	$0.00
Comments				

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Year 1998 System Computations ☑

Date Reported ☑ 04/08/1998 ☑ 07/07/1998 ☑ 10/09/1998 ☑ 01/05/1999

	Quarter 1		Quarter 2		Quarter 3		Quarter 4	
Type	Volume	Dollars	Volume	Dollars	Volume	Dollars	Volume	Dollars
CY	0	$0.00	0	$0.00	0	$0.00	0	$0.00

Fee Submitted	$0.00	$0.00	$0.00	$0.00
Fee Adjusted	$0.00	$0.00	$0.00	$0.00
Admin				
Fine	$0.00	$0.00	$0.00	$0.00
Should be**				
Difference				
Comments				STEVE MOSSBERG

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Year 1999 System Computations

Date Reported 04/08/1999 07/01/1999 10/04/1999 01/10/2000

	Quarter 1		Quarter 2		Quarter 3		Quarter 4	
Type	Volume	Dollars	Volume	Dollars	Volume	Dollars	Volume	Dollars
CY	0	$0.00	0	$0.00	0	$0.00	0	$0.00

Fee Submitted	$0.00	$0.00	$0.00	$0.00
Fee Adjusted	$0.00	$0.00	$0.00	$0.00
Admin	$0.00	$0.00	$0.00	$0.00
Fine	$0.00	$0.00	$0.00	$0.00
Should be**	$0.00	$0.00	$0.00	$0.00
Difference	$0.00	$0.00	$0.00	$0.00
Comments	Inactive site/no monies submitted.			

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Year 2000 System Computations

Date Reported 04/03/2000 07/12/2000 10/03/2000 01/11/2001

	Quarter 1		Quarter 2		Quarter 3		Quarter 4	
Type	Volume	Dollars	Volume	Dollars	Volume	Dollars	Volume	Dollars
CY	0	$0.00	0	$0.00	0	$0.00	0	$0.00

Fee Submitted	$0.00	$0.00	$0.00	$0.00
Fee Adjusted	$0.00	$0.00	$0.00	$0.00
Admin	$0.00	$0.00	$0.00	$0.00
Fine	$0.00	$0.00	$0.00	$0.00
Should be**	$0.00	$0.00	$0.00	$0.00
Difference	$0.00	$0.00	$0.00	$0.00
Comments	Not accepting waste.			

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Year 2001 System Computations ☑

Date Reported 04/09/2001 07/06/2001 10/09/2001 01/07/2002

	Quarter 1		Quarter 2		Quarter 3		Quarter 4	
Type	Volume	Dollars	Volume	Dollars	Volume	Dollars	Volume	Dollars
CY	0	$0.00	0	$0.00	0	$0.00	0	$0.00

Fee Submitted	$0.00	$0.00	$0.00	$0.00
Fee Adjusted	$0.00	$0.00	$0.00	$0.00
Admin				
Fine	$0.00	$0.00	$0.00	$0.00
Should be**				
Difference				
Comments	No tires received.	No tires received.	No tires received.	No tires received

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Action Facility Reports Window Help

Year 2002 System Computations ☑

Date Reported 04/05/2001 07/08/2002 10/21/2002 01/15/2003

	Quarter 1		Quarter 2		Quarter 3		Quarter 4	
Type	Volume	Dollars	Volume	Dollars	Volume	Dollars	Volume	Dollars
Veh	0	$0.00	0	$0.00	0	$0.00	0	$0.00

Fee Submitted	$0.00	$0.00	$0.00	$0.00
Fee Adjusted	$0.00	$0.00	$0.00	$0.00
Admin	$0.00	$0.00	$0.00	$0.00
Fine	$0.00	$0.00	$0.00	$0.00
Should be**	$0.00	$0.00	$0.00	$0.00
Difference	$0.00	$0.00	$0.00	$0.00
Comments		no volume	no volume	no volume

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STATE OF COLORADO

Roy Romer, Governor
Patti Shwayder, Executive Director
Dedicated to protecting and improving the health and environment of the people of Colorado
HAZARDOUS MATERIALS AND WASTE MANAGEMENT DIVISION

4300 Cherry Creek Dr. S.
Denver, Colorado 80222-1530
Phone (303) 692-3300
Fax (303) 759-5355

222 S. 6th Street, Room 232
Grand Junction, Colorado 81501-2768
Phone (303) 248-7164
Fax (303) 248-7198

Colorado Department of Public Health and Environment

March 31, 1997

Steve Mossberg
Southdown Lyons Cement Plant
P.O. Box 529
Lyons, CO 80540

Re: Solid Waste Financial Assurance
SW BLD SOU 1E

Dear Mr. Mossberg:

I have read your letter dated March 20, 1997 addressed to Steve Laudeman of my staff. You are correct in your assessment that as long as your facility is not receiving tires or storing tires you do not need to comply with the financial assurance portion of the solid waste regulations. Should you begin to receive tires in the future a financial assurance document is to be filed.

If you have any questions concerning this matter I may be reached at 303/692-3445.

Sincerely,

Glenn F. Mallory
Solid Waste Unit Leader
Hazardous Materials and
Waste Management Division

Colorado Department of Public Health and Environment

OPERATING PERMIT

CEMEX, Inc.

Lyons Cement Plant

ISSUED FEBRUARY 1, 2000

Last Revised: April 17, 2001

Proposed Minor Modification

AIR POLLUTION CONTROL DIVISION
COLORADO OPERATING PERMIT

FACILITY NAME:	CEMEX, Inc. Lyons Cement Plant	OPERATING PERMIT NUMBER
FACILITY ID:	0130003	**95OPBO082**
ISSUE DATE:	February 1, 2000	
EXPIRATION DATE:	February 1, 2005	
MODIFICATIONS:	See Appendix F of Permit	

Issued in accordance with the provisions of Colorado Air Quality Control Act, 25-7-101 et seq. (1989 & 1995 Supp.) and applicable rules and regulations.

ISSUED TO:

CEMEX, Inc.
1200 Smith Street, Suite 2400
Houston, Texas 77002

PLANT SITE LOCATION:

5134 Ute Highway
Lyons Colorado 80540
Boulder County

INFORMATION RELIED UPON

Operating Permit Application Received:	December 7, 1995, Revised October 23, 1998
And Additional Information Received:	August 1, 1996, October 22, 1996, November 21, 1996

Nature of Business:	Cement Production
Primary SIC:	3241

RESPONSIBLE OFFICIAL
Name: John Lohr
Title: Plant Manager

Phone: (303) 824-2100

FACILITY CONTACT PERSON
Name: Steve Mossberg
Title: Compliance Manager

Phone: (303) 823-2113

SUBMITTAL DEADLINES

Semi-Annual Monitoring Period:	February - July, July - January
Semi-Annual Monitoring Report:	August 1, 2000 & March 1, 2001 and subsequent years
Annual Compliance Period:	Begins February 1 to January 31
Annual Compliance Certification:	March 1, 2001 and subsequent years

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10. P007- Kiln, Calciner (S016)

P008 - Clinker Cooler (S018)

Parameter	Permit Condition Number	Limitations	Emission Factors	Monitoring	
				Method	Interval
Kiln Feed Rate & Clinker Production Rate	10.1			Recordkeeping	Daily
Operating Hours	10.2	8,064 hours/year		Recordkeeping	Daily and Annually
Kiln Feed Rate	10.3	120 tons/hour 967,680 tons/year (dry basis)		Recordkeeping	Daily and Annually
Natural Gas		The use of any other fuel requires Division approval		Recordkeeping	Monthly
Coal					
Whole or Shredded Tires					
Petroleum Coke					
Opacity - Kiln	10.4.3	Shall not exceed 20 %		Continuous Opacity Monitor	Continuous
Opacity - Clinker Cooler	10.4.4	Shall be less than 10%			
Opacity	10.6	Shall not exceed 20%, except as provided for in 10.7			

	10.12	1.5 micrograms per standard cubic meter averaged over a one-month period (State-Only)		Modeling, Recordkeeping and Calculation	See Condition 10.11
RACT - VOC	10.13	Process Design		Compliance Certification	Annually
MACT Standards	10.14	Kiln: 0.30 lb PM/ton feed (dry) 20% opacity D/F emission limit Clinker Cooler: 0.10 lb PM/ton feed (dry) 10% opacity		Stack Test O&M Plan COM Kiln:PM CEMS	Once every five years Continuous (Deferred)

10.1 The permittee shall record the daily production rates and kiln feed rates (40 CFR Part 60, Subpart F, as adopted by reference in Colorado Regulation No. 6, Part A and Construction Permit 12BO444-2). In addition, the permittee shall maintain a record of daily raw material consumption and clinker production rates (Construction Permit 12BO444-2). Note: After the MACT compliance date of June 10, 2002, this requirement still applies, as a Construction Permit applicable requirement.

10.2 Annual operating hours shall not exceed 8,064 (Construction Permit 12BO444-2). The permittee shall maintain records of annual and daily (Construction Permit 12BO444-2) operating hours on site for inspection upon request.

10.3 The Construction Permit was issued based on permitted fuels consisting of natural gas, coal, and/or used tires. The use of petroleum coke is incorporated directly into this operating permit according to Section 1, Condition 1.3 of this permit. No other fuels shall be used without prior approval from the Division. Records of the amount of each type of fuel shall be maintained on an annual and daily (Construction Permit 12BO444-2) basis and made available for inspection upon request. Kiln feed rate shall not exceed 120 tons/hour or 967,680 tons/year (dry basis). (Feed rate limits incorporated directly into this operating permit.) Records of the annual kiln feed rate shall be maintained an made available for inspection upon request. Compliance with the hourly kiln feed rate shall be determined by dividing the daily kiln feed rate, as recorded under Condition 10.1, by the daily hours of operation, as recorded under Condition 10.2.

STATE OF COLORADO

ill Owens, Governor
ane E. Norton, Executive Director

Dedicated to protecting and improving the health and environment of the people of Colorado

HAZARDOUS MATERIALS AND WASTE MANAGEMENT DIVISION
http://www.cdphe.state.co.us/hm/

4300 Cherry Creek Dr. S.
Denver, Colorado 80246-1530
Phone (303) 692-3300
Fax (303) 759-5355

222 S. 6th Street, Room 232
Grand Junction, Colorado 81501-2768
Phone (970) 248-7164
Fax (970) 248-7198

Colorado Department
of Public Health
and Environment

October 23, 2000

Mr. Steve Mossberg
Southdown, Inc.
5134 Ute Highway
P.O. Box 529
Lyons, CO 80540

RE: Southwestern Portland Cement Plant, 2000 Annual Inspection
Boulder County, Colorado

Dear Mr. Mossberg,

On Friday September 29, 2000 a representative of the Solid Waste Unit of the Hazardous Materials and Waste Management Division (Division) inspected the Southwestern Portland Cement Plant in Boulder County. The purpose of the inspection was to assess the compliance of the facility with the minimum standards of the Solid Waste Disposal Sites and Facilities Act, Title 30, Article 20, Part 1, C.R.S. as amended, and the Regulations promulgated thereunder, 6 CCR 1007-2 (Regulations). A copy of the inspection report is enclosed for your reference.

The results of the inspection indicate that the facility is operating in compliance with the minimum standards of the Regulations at this time.

If you have any questions regarding this matter, please contact me at 303-692-3389.

Sincerely,

Douglas M. Ikenberry

Douglas M. Ikenberry, P.E.
Solid Waste Unit
Hazardous Materials and Waste Management Division

Enclosure

FILE: SW BLD SOU 1.2

EXHIBIT
tabbies
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02CV1616

COLORADO DEPARTMENT of PUBLIC HEALTH & ENVIRONMENT
HAZARDOUS MATERIALS and WASTE MANAGEMENT DIVISION

SOLID WASTE DISPOSAL SITE AND FACILITY INSPECTION

This inspection is conducted pursuant to TITLE 30, ARTICLE 20, Part 1, § 113(6) C.R.S

Date: 9-29-00 Time In: 10:05 Time Out: _____

Facility Name: ~~SOUTHWEST PORTLAND CEMENT~~ CEMEX

Facility Location: 5134 Ute Highway

County: BOULDER ID: 013-INC-005

Inspection Type: Annual Photos: _____

Weather Conditions: Cloudy

Wind Speed & Direction: _____ Temperature: 65° F

Owner		Operator	
Name:	Steve Mossberg	Name:	Steve Mossberg
Address:	P.O. Box 529	Address:	P.O. Box 529
City:	Lyons	City:	Lyons
State:	CO Zip: 80540 -	State:	CO Zip: 80540 -
Phone:	3038232100	Phone:	3038232113
Email:		Email:	

FACILITY REPRESENTATIVES

Name	Title	Phone
Steve Mossberg		

LOCAL GOVERNMENT REPRESENTATIVES

Name	Agency	Phone

INSPECTORS

Name	Agency	Phone
Doug Ikenberry		

Facility Representative Initial _____

Facility Name: ~~SOUTHWEST PORTLAND CEMENT~~ CEMAX

Date: _____

OPERATIONS – COMPLIANCE					
ID	Factor	Regulation	YES	NO	N/A
1	Access Control	2.1.8	X		
2	Adequate Signage	2.1.8	X		
3	Minimize Nuisance	2.1.3	X		
4	Adequate Intermediate Cover	1.2			X
5	Adequate Daily Cover	3.3.4(A)			X
6	Alternate Daily Cover Type:	3.3.4(B)			X
7	Final Cover Integrity	3.6.1(A)(2)			X
8	Compaction	2.1.10			X
9	Equipment	3.3.2(E)			X
10	Waste Distributed in Smallest	2.1.10			X
11	Working Face Size (ht x lgth)	2.1.10			X
12	Restricted Unloading Area	2.1.10	X		
13	Wind Speed Monitoring	2.1.11	X		X dmg
14	Prevent Windblown Debris	2.1.11			X
15	Prevent Debris From	2.1.7			X
16	Perimeter Fence	2.1.8	X		
17	Lack of Debris Accum. on	2.1.7			X
18	Dust Control	2.1.3	X		
19	Perimeter Run-On Controls	2.1.6			X
20	Water Diverted From	3.2.6(a)			X
21	Surface Water Drainage-No	2.1.10			X
22	Ground Water Monitoring	2.2			X
23	GW Mon. Syst. Properly	2.2.1(A)			X
24	Explosive Gas Monitoring	2.3			X
25	ExGas Mon Syst. Properly	2.3.4			X

OPERATION RECORDS						
ID	Factor	Regulation	Location	YES	NO	N/A
1	Certificate of Designation	1.3.3		X		for fire
2	Design & Operation Plan	2.4.1				X
3	As-Built Operation Plan	3.4(D)				X
4	Waivers	3.4(E) & (F)				X
5	Waste Characterization Plan	2.1.2(C)				X
6	Waste Characterization	2.1.2(C)(2)				X
7	Waste Types	3.3.2(C)				X
8	Waste Volumes	3.4(A)				X
9	Financial Assurance	2.4.2(H)				
10	Ground Water Monitoring	3.4(B)				
11	Explosive Gas Monitoring	3.4(C)				

Facility Representative Initial _____

Facility Name: ~~SOUTHWEST PORTLAND CEMENT~~ CEMEX

Date: 9-29-00

OPERATION RECORDS						
ID	**Factor**	**Regulation**	**Location**	**YES**	**NO**	**N/A**
12	Leachate	2.4.2(D)				X
13	Employee Training	2.1.2(B)(3)		X		
14	Location Restriction	2.4.2(A)				X
15	Closure & Post-Closure	2.4.2(F)		X		

HSRF: Yes

Quantity Verification Method: Not burning tires

Time Period	Volume

Facility Representative Initial

COLORADO DEPARTMENT of PUBLIC HEALTH & ENVIRONMENT
HAZARDOUS MATERIALS and WASTE MANAGEMENT DIVISION

SOLID WASTE DISPOSAL SITE AND FACILITY INSPECTION

This inspection is conducted pursuant to TITLE 30, ARTICLE 20, Part 1, § 113(6) C.R.S

Date: 8-7-01 Time In: 9:30 am Time Out: 10:15 am

Facility Name: CEMEX INC.
Facility Location: 5134 Ute Highway
County: BOULDER ID: 013-INC-005
Inspection Type: Routine Photos:
Weather Conditions: Sunny
Wind Speed & Direction: Calm Temperature: ~80°F

Owner		Operator	
Org:	CEMEX INC.	Org:	CEMEX INC.
Name:	Steve Mossberg	Name:	Steve Mossberg
Address:	P.O. Box 529	Address:	P.O. Box 529
City:	Lyons	City:	Lyons
State:	CO Zip: 80540 -	State:	CO Zip: 80540 -
Phone:	(303) 823-2100	Phone:	3038232113
Email:		Email:	

FACILITY REPRESENTATIVES

Name	Title	Phone
Steve Mossberg	Compliance Manager	3038232113

LOCAL GOVERNMENT REPRESENTATIVES

Name	Agency	Phone

INSPECTORS

Name	Agency	Phone
Doug Ikenberry	CDPHE	303-692-3389

Facility Representative Initial

Facility Name: CEMEX INC.

Date: 8-7-01

INSPECTORS		
Name	**Agency**	**Phone**

OPERATIONS - COMPLIANCE					
ID	**Factor**	**Regulation**	**YES**	**NO**	**N/A**
1	Access Control	2.1.8	X		
2	Adequate Signage	2.1.8	X		
3	Minimize Nuisance Conditions	2.1.3	X		
4	Adequate Intermediate Cover	1.2			X
5	Adequate Daily Cover	3.3.4(A)			X
6	Alternate Daily Cover Type:	3.3.4(B)			X
7	Final Cover Integrity	3.6.1(A)(2)			X
8	Compaction	2.1.10			X
9	Equipment	3.3.2(E)			X
10	Waste Distributed in Smallest Area	2.1.10			X
11	Working Face Size (ht x lgth)	2.1.10			X
12	Restricted Unloading Area	2.1.10	X		
13	Wind Speed Monitoring	2.1.11	X		
14	Prevent Windblown Debris	2.1.11			X
15	Prevent Debris From Escaping	2.1.7			X
16	Perimeter Fence	2.1.8	X		
17	Lack of Debris Accum. on Fence	2.1.7			X
18	Dust Control	2.1.3	X		
19	Perimeter Run-On Controls NPDES permit	2.1.6	X		
20	Water Diverted From Working Face	3.2.6(a)			X
21	Surface Water Drainage-No Ponding	2.1.10			X
22	Ground Water Monitoring	2.2			X
23	GW Mon. Syst. Properly Maintained	2.2.1(A)			X
24	Explosive Gas Monitoring	2.3			X
25	ExGas Mon Syst. Properly Maintained	2.3.4			X

8-01 DMG DMG

DMG

OPERATION RECORDS						
ID	**Factor**	**Regulation**	**Location**	**YE**	**NO**	**N/A**
1	Certificate of Designation	1.3.3	Call Builder	X		
2	Design & Operation Plan	2.4.1	CD application	X		
3	As-Built Operation Plan	3.4(D)	office	X		
4	Waivers	3.4(E) &				X
5	Waste Characterization Plan	2.1.2(C)				X
6	Waste Characterization Records	2.1.2(C)(2)				X
7	Waste Types	3.3.2(C)				X
8	Waste Volumes	3.4(A)				X

DMG

(8) 8-20

(8) Steve Mossberg to check archives.

Facility Representative Initial _____

Facility Name: CEMEX INC.

Date: 8-7-01

OPERATION RECORDS						
ID	Factor	Regulation	Location	YE	NO	N/A
9	Financial Assurance	2.4.2(H)				X
10	Ground Water Monitoring	3.4(B)				X
11	Explosive Gas Monitoring	3.4(C)				X
12	Leachate	2.4.2(D)				X
13	Employee Training	2.1.2(B)(3)		X		
14	Location Restriction Demonstration	2.4.2(A)				X
15	Closure & Post-Closure	2.4.2(F)		X		

HSRF: Yes

Quantity Verification Method: N/A

Time Period	Volume

Facility Representative Initial

COLORADO DEPARTMENT of PUBLIC HEALTH & ENVIRONMENT
HAZARDOUS MATERIALS and WASTE MANAGEMENT DIVISION

SOLID WASTE DISPOSAL SITE AND FACILITY INSPECTION

This inspection is conducted pursuant to TITLE 30, ARTICLE 20, Part 1, § 113(6) C.R.S

Date: 4-4-02 Time In: 9:25 am Time Out: 11:00 am

Facility Name: CEMEX INC.
Facility Location: 5134 Ute Highway
County: BOULDER ID: 013-INC-005

Inspection Type: Annual Photos:

Weather Conditions: Ptly Cldy - Calm

Wind Speed & Direction: Calm Temperature: ~50°F

Owner		Operator	
Org:	CEMEX INC.	Org:	CEMEX INC.
Name:	Steve Mossberg	Name:	Steve Mossberg
Address:	P.O. Box 529	Address:	P.O. Box 529
City:	Lyons	City:	Lyons
State:	CO Zip: 80540 -	State:	CO Zip: 80540 -
Phone:	(303) 823-2113	Phone:	3038232113
Email:		Email:	

FACILITY REPRESENTATIVES

Name	Title	Phone
Steve Mossberg	Compliance Manager	303-823-2113

LOCAL GOVERNMENT REPRESENTATIVES

Name	Agency	Phone

INSPECTORS

Name	Agency	Phone
Doug Ikenberry	CDPHE	303-692-3389

Facility Representative Initial

Facility Name: Cemex

Date: 4-4-02

INSPECTORS		
Name	Agency	Phone

OPERATIONS - COMPLIANCE					
ID	Factor	Regulation	YES	NO	N/A
1	Access Control	2.1.8	X		
2	Adequate Signage	2.1.8	X		
3	Minimize Nuisance Conditions	2.1.3	X		
4	Adequate Intermediate Cover	1.2			X
5	Adequate Daily Cover	3.3.4(A)			X
6	Alternate Daily Cover Type:	3.3.4(B)			X
7	Final Cover Integrity	3.6.1(A)(2)			X
8	Compaction	2.1.10			X
9	Equipment	3.3.2(E)			X
10	Waste Distributed in Smallest Area	2.1.10			X
11	Working Face Size (ht x lgth)	2.1.10			X
12	Restricted Unloading Area	2.1.10	X		
13	Wind Speed Monitoring	2.1.11	X		
14	Prevent Windblown Debris	2.1.11			X
15	Prevent Debris From Escaping	2.1.7			X
16	Perimeter Fence	2.1.8	X		
17	Lack of Debris Accum. on Fence	2.1.7			X
18	Dust Control	2.1.3	X		
19	Perimeter Run-On Controls NPDES Permit	2.1.6	X		
20	Water Diverted From Working Face	3.2.6(a)			X
21	Surface Water Drainage-No Ponding	2.1.10			X
22	Ground Water Monitoring	2.2			X
23	GW Mon. Syst. Properly Maintained	2.2.1(A)			X
24	Explosive Gas Monitoring	2.3			X
25	ExGas Mon Syst. Properly Maintained	2.3.4			X

OPERATION RECORDS						
ID	Factor	Regulation	Location	YES	NO	N/A
1	Certificate of Designation	1.3.3	Site Office	X		
2	Design & Operation Plan	2.4.1	CD application	X		
3	As-Built Operation Plan	3.4(D)	Site Office	X		
4	Waivers	3.4(E) &				X
5	Waste Characterization Plan	2.1.2(C)				X
6	Waste Characterization Records	2.1.2(C)(2)				X
7	Waste Types	3.3.2(C)				X
8	Waste Volumes	3.4(A)				X

Facility Representative Initial SM

Facility Name: Cemex

Date: 4-4-02

OPERATION RECORDS						
ID	Factor	Regulation	Location	YES	NO	N/A
9	Financial Assurance	2.4.2(H)				X
10	Ground Water Monitoring	3.4(B)				X
11	Explosive Gas Monitoring	3.4(C)				X
12	Leachate	2.4.2(D)				X
13	Employee Training	2.1.2(B)(3)		X		
14	Location Restriction Demonstration	2.4.2(A)				X
15	Closure & Post-Closure	2.4.2(F)	Site Office	X		

HSRF: No

Quantity Verification Method: N/A

Time Period	Volume

Facility Representative Initial JM

July 1, 2002

Mr. Robert Jorgensen
Colorado Dept of Public Health and Environment
APCD-SS-B1
4300 Cherry Creek Drive South
Denver, CO 80246

RE: Permit # 95 OPBO 082 – Tire Derived Fuels

Dear Mr. Jorgensen:

This letter is to inform you that Cemex, Inc. is planning to run a test burn on tires in the kiln late this summer (Sept 2002?). A date has not been set. This kiln has previously burned tires in the 1989-1992 period. This fuel has remained in our permit. The purpose of the September test is to evaluate the impact of tires on our kiln throughput rates. Our current direction is to evaluate 5-20% substitution of tires for fossil fuels. While tires burned cleanly in our previous experience, there was a decrease in throughput. We will inform your office when a date has been set for the test.

We are aware of some concern from our neighbors. We are using the Boulder County task force to surface these concerns and establish a test protocol to objectively evaluate them. Our next meeting on July 17, 2002 will be devoted primarily to these efforts. If there is someone available from your office, you are welcome to participate (5:00 pm at the Cemex plant conference room).

If you have additional questions or concerns, please call: 303-823-2109.

Sincerely,

John Lohr
Plant Manager

Cc
Jeet Gill, Cemex, Inc.
Shannon MacMillan, CO Dept of Public Health and Environment

United States Operations
P.O. Box 529, Lyons, Colorado 80540, USA, Phone: (303) 823-2100, Fax: (303) 823-2199

Post Office Box [illegible] • Boulder, Colorado 80306 • (303) 441-3930

Boulder County

Land Use Department

Conservation Annex
2045 13th Street • 1325 Spruce Street • Boulder, Colorado 80302 • (303) 441-3930

September 5, 2002

Mr. John Lohr
Plant Manager
Lyons Plant
P.O. Box 529
Lyons, CO 80540

RE: County Land Use Department Position on Status of County Special Use Permit/Certificate of Designation Approved in Docket #SU-88-21 (County Commissioners' Resolution 90-59 Approving "Lyons Rubber Recycling Facility"), with Regard to Proposed Resuming of Fuel Tire Burning at CEMEX Plant (formerly Southwest Portland Cement Company/Southdown, Inc.)

Dear John:

It has come to this Department's attention that CEMEX is proposing to resume the burning of discarded tires for fuel, pending the results of a test burn which may be conducted in September, 2002. As you know, the Board of County Commissioners approved a special use permit/certificate of designation for this use in 1990, pursuant to the Boulder County Zoning Resolution in effect at the time and the Colorado Solid Waste Disposal Sites and Facilities Act. The conditions of that permit were set forth in Resolution 90-59 of the Board adopted following a public hearing held on May 30, 1989.

CEMEX fulfilled the conditions of approval under the 1990 County special use permit, and proceeded to burn tires pursuant to the permit between 1990 and 1993. Although CEMEX burned only shredded tires at that time, the permit allowed for the burning of both shredded and whole tires, with no more than a one-month supply of shredded tires to be stored on site at any one time (equivalent of 150,000 whole tires), and no more than 50,000 whole tires (a 10-day supply) to be stored on site at any one time. (The latter limitations were contained in CEMEX's predecessor's special use permit proposal which was incorporated into the 1990 approval as commitments of record.) Based on the information available to us, Southdown/CEMEX has not burned tires under the permit since 1993.

Jones L. Horsley
County Commissioner

Ronald K. Stewart
County Commissioner

Paul Danish
County Commissioner

EXHIBIT
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This Department has determined that the 1990 special use permit/certificate of designation for this use is still in effect. We have reached this conclusion notwithstanding 1996 amendments to the Boulder County Land Use Code, which imposed a "lapse" provision on special use permits under which operations cease for a continuous period of five years or more (see Article 4-604(C) of the Land Use Code). Since CEMEX's predecessor finalized its permit and substantially commenced operations under the permit in the 1990-1993 period, we have determined that it is not appropriate to apply the 1996 lapse provision retroactively to the 1990 approval.

The Land Use Department has been in recent communication regarding the 1990 permit with the County Health Department, State Air Quality Control Division, and State Solid Waste Division. We understand that CEMEX's current air emissions permit would allow for the proposed September test burn to occur, and that all three of these agencies will be monitoring the results of the proposed test burn, if conducted.

This Department specifically requests that, if the test burn occurs and CEMEX determines (following review of the results by the appropriate agencies) to resume tire burning, CEMEX then submit to this Department, within a reasonable time prior to resuming burning, a detailed, written proposal for the burning, including numbers and types of tires to be burned, mode and frequency of transport of tires or tire shreds to the CEMEX property, method of tire storage prior to burning, any new construction required to accommodate the tire burning process, and a statement of continued compliance with (as well as any anticipated deviations from) each of the conditions of approval specified in Resolution 90-59. Based on this written proposal, the County will determine whether the resumed burning constitutes a substantial modification to the 1990 special use permit/certificate of designation. If the County determines that a substantial modification exists, our regulations require that CEMEX obtain an amendment to the 1990 permit/certificate of designation, through the County's special use process. If no substantial changes to the 1990 approval are presented, CEMEX may resume burning discarded tires under the 1990 permit, subject, of course, to compliance with all other applicable agency requirements.

Thank you for your attention to this matter.

Sincerely,

Graham S. Billingsley
Land Use Director

cc: Marianne Reichert, Boulder County Constituent Officer
Jim Burrus, Boulder County Public Information Officer
Dickey Lee Hullinghorst, Boulder County Intergovernmental Relations Director
H. Lawrence Hoyt, Boulder County Attorney
Barbara Andrews, Assistant Boulder County Attorney

Jeff Zayach, Environmental Health Manager, Boulder County Health Department
Pam Millmoe, Boulder County Health Department
Bonnie Greenwood, Boulder County Health Department
David Quimette, Manager, Stationary Source Program, Air Quality Control Division, Colorado Department of Public Health and Environment
Glenn Mallory, Solid Waste Unit Leader, Compliance Program, Colorado Department of Public Health and Environment (4300 Cherry Creek Drive S., Denver, CO 80246-1530)

CEMEX

September 9, 2002

Mr. Tom Lovell
CDPHE, APCD-SS-B1
4300 Cherry Creek Drive South
Denver, CO 80246

FAX ANDCERTIFIED MAIL - RETURN RECEIPT REQUESTED

RE: Tired Derived Fuels Test
Permit # 95OPBO082

Dear Mr. Lovell:

This letter is to notify the Colorado Department of Public Health and Environment that CEMEX, Inc. Lyons Cement Plant is planning to run a test on our kiln system using Tire Derived Fuels. The test is tentatively scheduled for the week of October 14, 2002. Air Pollution Testing is preparing a stack testing protocol for your review.

If you have any questions or comments, please feel free to call me at 303-823-2113.

Sincerely,

Steve Mossberg

United States Operations
P.O. Box 529, Lyons, Colorado 80540, USA. Phone: (303) 823-2100. Fax: (303) 823-2199

STATE OF COLORADO

Bill Owens, Governor
Douglas H. Benevento, Acting Executive Director

Dedicated to protecting and improving the health and environment of the people of Colorado

4300 Cherry Creek Dr. S.
Denver, Colorado 80246-1530
Phone (303) 692-2000
TDD Line (303) 691-7700
Located in Glendale, Colorado

Laboratory and Radiation Services Division
8100 Lowry Blvd.
Denver, Colorado 80230-6928
(303) 692-3090

http://www.cdphe.state.co.us

Colorado Department
of Public Health
and Environment

October 8, 2002

Mr. Steve Mossberg
Compliance Manager
CEMEX, Inc.
P.O. Box 529
Lyons, CO 80540

RE: Lyons Cement Plant
Title V Operating Permit Issuance

Dear Mr. Mossberg:

As requested, the Division has processed a Minor Modification for the referenced permit. No public notice or review by affected states is required for a minor modification, however, the proposed permit was submitted to the EPA for a 45 day review period. The EPA did not comment during the 45 day period. A copy of the revised Operating Permit has been submitted to the EPA (Regulation No. 3, Part A.III.C).

The enclosed revised permit replaces the previously issued Operating Permit. Please be aware that although a new permit is issued, the expiration date is the same as identified in the original permit. If you have any questions regarding the minor modification procedure or the changes that the Division made to the permit, please contact me at (303) 692-3145.

Sincerely,

Cathy Rhodes

Cathy Rhodes
Permit Engineer
Operating Permits Unit
Stationary Sources Division

EXHIBIT
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Colorado Department of Public Health and Environment

OPERATING PERMIT

CEMEX, Inc.

Lyons Cement Plant

ISSUED FEBRUARY 1, 2000

Last Revised: October 8, 2002

AIR POLLUTION CONTROL DIVISION
COLORADO OPERATING PERMIT

FACILITY NAME:	CEMEX, Inc. Lyons Cement Plant	OPERATING PERMIT NUMBER
FACILITY ID:	0130003	**95OPBO082**
ISSUE DATE:	February 1, 2000	
EXPIRATION DATE:	February 1, 2005	
MODIFICATIONS:	See Appendix F of Permit	

Issued in accordance with the provisions of Colorado Air Pollution Prevention and Control Act, 25-7-101 et seq Supp. and applicable rules and regulations.

ISSUED TO:	PLANT SITE LOCATION:
CEMEX, Inc. 1200 Smith Street, Suite 2400 Houston, Texas 77002	5134 Ute Highway Lyons Colorado 80540 Boulder County

---

INFORMATION RELIED UPON

Operating Permit Application Received:	December 7, 1995, Revised October 23, 1998
And Additional Information Received:	August 1, 1996, October 22, 1996, November 21, 1996

Nature of Business:	Cement Production
Primary SIC:	3241

RESPONSIBLE OFFICIAL	FACILITY CONTACT PERSON
Name: John Lohr	Name: Steve Mossberg
Title: Plant Manager	Title: Compliance Manager
Phone: (303) 824-2100	Phone: (303) 823-2113

SUBMITTAL DEADLINES

Semi-Annual Monitoring Period:	February - July, July - January
Semi-Annual Monitoring Report:	August 1, 2000 & March 1, 2001 and subsequent years
Annual Compliance Period:	Begins February 1 to January 31
Annual Compliance Certification:	March 1, 2001 and subsequent years

10. P007- Kiln, Calciner (S016)

P008 - Clinker Cooler (S018)

Parameter	Permit Condition Number	Limitations	Emission Factors	Monitoring	
				Method	Interval
Kiln Feed Rate & Clinker Production Rate	10.1			Recordkeeping	Daily
Operating Hours	10.2	8,064 hours/year		Recordkeeping	Daily and Annually
Kiln Feed Rate	10.3	120 tons/hour 967,680 tons/year (dry basis)		Recordkeeping	Daily and Annually
Natural Gas		The use of any other fuel requires Division approval		Recordkeeping	Monthly
Coal					
Whole or Shredded Tires					
Petroleum Coke					
Opacity - Kiln	10.4.3	Shall not exceed 20 %		Continuous Opacity Monitor	Continuous
Opacity - Clinker Cooler	10.4.4	Shall be less than 10%			
Opacity	10.6	Shall not exceed 20%, except as provided for in 10.7			

	10.12	1.5 micrograms per standard cubic meter averaged over a one-month period **(State-Only)**		Modeling, Recordkeeping and Calculation	See Condition 10.11
RACT - VOC	10.13	Process Design		Compliance Certification	Annually
MACT Standards	10.14	Kiln: 0.30 lb PM/ton feed (dry) 20% opacity D/F emission limit Clinker Cooler: 0.10 lb PM/ton feed (dry) 10% opacity		Stack Test O&M Plan COM Kiln:PM CEMS	Once every five years Continuous (Deferred)

10.1 The permittee shall record the daily production rates and kiln feed rates (40 CFR Part 60, Subpart F, as adopted by reference in Colorado Regulation No. 6, Part A and Construction Permit 12BO444-2). In addition, the permittee shall maintain a record of daily raw material consumption and clinker production ra (Construction Permit 12BO444-2). Note: After the MACT compliance date of June 10, 2002, this requirement still applies, as a Construction Permit applicable requirement.

10.2 Annual operating hours shall not exceed 8,064 (Construction Permit 12BO444-2). The permittee shall maintain records of annual and daily (Construction Permit 12BO444-2) operating hours on site for inspection upon request.

10.3 The Construction Permit was issued based on permitted fuels consisting of natural gas, coal, and/or used tires. The use of petroleum coke is incorporated directly into this operating permit according to Section 1, Condition 1.3 of this permit. No other fuels shall be used without prior approval from the Division. Records of the amount of each type of fuel shall be maintained on an annual and daily (Construction Permit 12BO444-2) basis and made available for inspection upon request. Kiln feed rate shall not exceed 120 tons/hour or 967,680 tons/year (dry basis). (Feed rate limits incorporated directly into this operating permit.) Records of the annual kiln feed rate shall be maintained an made available for inspection upon request. Compliance with the hourly kiln feed rate shall be determined by dividing the daily kiln feed rate, as recorded under Condition 10.1, by the daily hours of operation, as recorded under Condition 10.2.

AIR POLLUTION TESTING, INC.
DENVER, SALT LAKE CITY

Source Emissions Testing Protocol (Rev. 6)

CEMEX – TDF/Coal Demonstration Tests
Lyons, Colorado Cement Plant

Kiln Stack: PM, HCl, PCDDs / PCDFs, PCBs, PAHs,
Multiple Metals, Formaldehyde, Benzene

Protocol prepared for:
Mr. Steve Mossberg
Compliance Manager
CEMEX
5134 Ute Highway
Lyons, Colorado 80540

Protocol reviewed by:



Paul Ottenstein
Technical Director

APT Project: CMX2453

Revision 1: Add PCBs (9/23/02)
Revision 2: Discuss baghouse operating temp. (9/26/02)
Revision 3: Date changes (9/27/02)
Revision 4: Date changes (10/9/02)
Revision 5: CDPHE/Boulder County meeting changes (10/17/02)
Revision 6: Solvent recovery changed for PASC (11/1/02)

DENVER OFFICE
12421 W. 49th Ave., Unit 1
Wheat Ridge, CO 80033
(303) 420-5949
FAX (303) 420-5920
(800) 268-6213

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Laboratory Analyte / MDL Lists..... Appendix 2

Mr. Steve Mossberg
CEMEX, Inc.
5134 Ute Highway
Lyons, Colorado 80540

Dear Mr. Mossberg:

Air Pollution Testing, Inc. (APT) is pleased to submit the following test protocol for emission testing services at the CEMEX, Inc. Lyons Cement Plant.

1. Introduction

The purpose of the subject testing program is to quantify the emitted concentrations and mass emission rates of particulate matter (PM), polychlorinated dibenzo-p-dioxins and polychlorinated dibenzofurans (PCDDs and PCDFs), hydrogen chloride (HCl), multiple metals, trace hydrocarbons, aldehydes (formaldehyde and acetaldehyde), polychlorinated biphenyls (PCBs), and polycyclic aromatic hydrocarbons (PAHs) from the Kiln Stack at the CEMEX mill in Lyons, Colorado.

U.S. Environmental Protection Agency (EPA) and California Air Resources Board (CARB) reference methods will be used to quantify all emission parameters. Table 3.1 provides a summary of the proposed sampling and analytical methods.

The testing is being conducted to demonstrate emission levels of various pollutants during the combustion of coal versus tire derived fuel (TDF) in order to assess the environmental impact associated with a change to TDF. During the TDF demonstration testing, the plant will use at least 15% TDF, and will attempt to use 20% TDF on a Btu basis. CEMEX personnel on-site will determine the exact TDF Btu percentage during testing.

Additionally, the data will be used to establish a baghouse operating temperature for ongoing compliance demonstration in accordance with MACT requirements. The plant has demonstrated compliant emissions at a baghouse inlet temperature of 496 degrees Fahrenheit. The current test program will collect data at an estimated inlet temperature of 510 degrees Fahrenheit.

Testing will be conducted at the Kiln during normal operation. The first week of testing will be conducted while the kiln is firing on bituminous coal. The second week of testing will be conducted while the kiln is firing TDF. During each test, operating data will be collected by plant personnel to document the operations.

Contact personnel are provided in Table 1.1 on the following page.

STATE OF COLORADO

Bill Owens, Governor
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Laboratory and Radiation Services Division
8100 Lowry Blvd.
Denver, Colorado 80230-6928
(303) 692-3090

Colorado Department
of Public Health
and Environment

November 12, 2002

Mr. Steve Mossberg
CEMEX
5134 Ute Highway (80503)
P.O. Box 529
Lyons, CO 80540

RE: CEMEX Financial Assurance

Dear Mr. Mossberg,

Per our November 12, 2002 telephone conversation, the Hazardous Materials and Waste Management Division understands that CEMEX intends to receive about 11,000 tires at their facility. It is also our understanding that these tires are anticipated to be on site over a two week period for use in a test burn. Consequently, the Division requests that CEMEX submit financial assurance at a rate of at least one dollar per tire prior to this endeavor.

Please contact me at 303-692-3389 if you have any questions.

Sincerely,

Douglas M. Ikenberry

Douglas M. Ikenberry
Solid Waste Unit
Compliance Program

Cc: Gabi Hoefler, Boulder County Environmental Health

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Post-it® Fax Note 7671	Date 11/14/02	# of pages ▶ 1
To GRAHAM BILLINGSLEY	From JOHN LOHR	
Co./Dept. LAND USE - BOC O	Co. CEMEX	
Phone # 303-441-3930	Phone # 303-823-2109	
Fax # 303-441-4856	Fax # 303-823-2199	

CEMEX

November 14, 2002

Mr. Graham Billingsley
Director, Boulder County Land Use
14th and Spruce Streets
Boulder, CO 80306

Post-it® Fax Note 7671	Date 11/14/02	# of pages ▶ 1
To BERNIE WHITE	From JOHN LOHR	
Co./Dept. PETROS - WHITE	Co. CEMEX	
Phone # 303-825-1980	Phone # 303-823-2109	
Fax # 303-825-1983	Fax # 303-823-2199	

VIA FAX

Dear Mr. Billingsley:

Please consider this letter Cemex's formal notice of the Tire Derived Fuels Test. While base conditions are being conducted currently, the actual tire injection testing is expected to begin at 4 am on November 18, 2002. Please let me know if you or others from your department are interested in observing any portion of this test.

You could contact me by phone (303-823-2109), fax (303-823-2199), or e-mail (jlohr@cemexusa.com) if you have questions or would like to observe the test. Depending on kiln and weather conditions, the test is expected to last 3 to 5 days.

Sincerely,

John Lohr
Plant Manager

United States Operations
P O. Box 529. Lyons, Colorado. 80540. USA. Phone: (303) 823-2100. Fax: (303) 823-2199

PUBLIC FORUM
NOVEMBER 14

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P.O. Box 529
Lyons, CO 80540
Phone 303.823.2109
Fax 303.823.2199

CEMEX

10 Frequently Asked Questions Regarding Tire Derived Fuels at Cemex, Lyons Cement Plant

In June, the Cemex cement plant in Lyons announced that it would be organizing a test of Tire Derived Fuel. Since that announcement, there have been many questions from members of the community. To ensure that you know the facts before a final decision is made, here are answers to the 10 most frequently asked questions . . .

1. What is the Lyons plant? What do you do there? The Lyons cement plant is a facility for mining limestone and manufacturing the gray powder used to make concrete, known as Portland cement. The large concrete silos, conveyor belts, kiln and steel tower you see from the highway make up the manufacturing plant. Here we produce (and ship) 550,000 tons of cement for our Colorado customers, which equals approximately 25% of the state's annual consumption of cement used for homes, offices, roads, public works, etc.
2. What are the benefits of using tires as fuel?
   a. Using tires as fuel is a better use of our resources. Tires contain more fuel potential (pound for pound) than coal. By using scrap tires as fuel, we can reduce our consumption of coal by 15,000 tons per year. This extends the coal reserves and reduces the market demand for this valuable fuel. It is time to put some of these tires back to work.
   b. The Lyons plant could reduce the rate of tire buildup by 25% in Colorado. In the U.S. today, we average one scrap tire per person per year. This amounts to about 4,000,000 scrap tires each year, right here in Colorado alone. You pay an environmental fee for scrap tire disposal whenever you buy new tires. Yet, most of those scrap tires go to collection points for long term storage or to landfills. Year after year, they continue to stack up at these sites and become not only a fire risk, but also a breeding ground for rodents and insects.

      Our preliminary estimates are that, with a substitution of 15% tires for coal, the Lyons plant would consume 1,000,000 of these scrap tires per year. This means 1,000,000 fewer tires that could catch fire or attract rodents or insects.

   c. Tire derived fuels will reduce manufacturing costs at the Lyons plant. This is important. By continually seeking out and implementing improvements to its operations, private companies remain healthy and viable — fueling the U.S. economy. Virtually all of our salaries, medical benefits, and government services are made possible thanks to the successes of private companies like Cemex.
3. Won't we see black smoke and smell burning rubber? In a word, NO! The elevated temperatures and controlled conditions in the cement kiln totally incinerate the tires. There will be NO visible emissions and NO odor.
4. Is Tire Derived Fuel safe for the community? Stack emissions typically change very little whether burning 100% coal or substituting tires for 15 to 20% of the fuel. In order to determine how emissions might change here at Lyons, it is necessary to conduct a test. Here's what will happen:

   An independent certified company will collect and analyze the samples. State and county health officials will monitor the test.
   The results will be available to the local community after the laboratory work is completed and a written report submitted (this should occur within 2 to 3 months of the initial test).

   The plan to test stack emissions for virtually all elements and compounds that science can measure is above and beyond what current regulations require. Seldom do companies make a point of providing test data to their communities. In an effort to ensure you that Tire Derived Fuels are safe for our local community, Cemex is taking an unprecedented step by moving forward with this plan.
5. Why is there going to be a test? I heard that Cemex has its permits. Our state emissions permit currently includes tires as a listed fuel. However, the new federal "Maximum Achievable Control Technology" (MACT) regulations require an emissions test whenever an untested fuel is burned. This test will confirm that Cemex will comply with MACT's federal emission limits. In addition to the emissions permit, the company has another permit that allows the receipt, storage and handling of scrap tires at the Lyons site.
6. When will the test occur? The tire burning part of the test is planned to occur during the week of November 18th. It will take 3 to 5 days to complete.
7. What happens to the ash? There is NO ash. When burned in a cement kiln, these scrap tires experience temperatures up to 2700 degrees Fahrenheit — hot enough to literally melt rock. Therefore, the entire tire is consumed — all the rubber burns. The steel in the cord and bead melts and becomes part of our product.
8. How will scrap tires be delivered to the site? During the test tires will be delivered, clean and dry, in enclosed vans. Approximately 10 to 12 tons of tires will fit in a van. At 15% substitution, there would be 4 or 5 vans delivered each day.

   Upon delivery, some tires will be inventoried more than 100 feet off the ground on our equipment tower.
   The remaining tires will be kept in the enclosed vans until just hours before they are inserted into the kiln.
   There will be NO opportunity for these tires to become homes for rodents or insects.
   When stored out of the sun and protected from sources of heat and flame in metal containers, the risk of fire is minimal.
9. How will the tires be handled at the site? The most economic way to conduct the test is to hire a work force of up to twenty people to carry and stack the tires by hand. If the decision is made to use tires as fuel on a long-term basis, automated unloading and handling systems will be added.
10. How can we get other questions answered or more information? Cemex invites you to a community meeting on Thursday, November 14 at the Lyons Elementary School Cafeteria. Cemex personnel, Health Department officials, and a representative of the Rubber Manufacturers Association will be on hand to answer your questions. It will be an informal affair with an opportunity for you to discuss issues one-to-one with any of us.

Conclusion: Cemex continually strives to be a proactive, responsible, and responsive member of the community. We have already taken many steps to make the Tire Derived Fuel test a public forum, not a company secret. For instance, we:

- Announced our intention to conduct a test back in June.
- Discussed this project with the Northern Boulder County Community Task Force throughout the summer.
- Are inviting the public to an information forum on November 14, 2002.
- Voluntarily requested a full suite of tests when a greatly abbreviated list would have satisfied the regulations.
- Are committed to sharing the test results with the community.
- Have agreed not to make a final decision on the future of Tire Derived Fuels at Lyons until after the report is complete.

I thank each and every one of you for waiting for the scientific facts. We all live in this community so I want to insure that any action our plant takes is safe for our families' health and yours. This approach allows us all to make informed and wise decisions.

I hope you'll join us at the Lyons Elementary School cafeteria on
November 14 from 6 pm to 8 pm
for informal discussions about this project. I look forward to meeting and talking with you at that time.



Thank you for your consideration.

John Lohr
Plant Manager
Cemex, Lyons Cement Plant

CEMEX

REFUND

November 18,2002

Douglas M. Ikenberry
Hazardous Materials and Waste Management Division
Colorado Department of Public Health and Environment
4300 Cherry Creek Drive South
Denver, CO 80246-1530

RE: Financial Assurance, TDF Test
CEMEX Inc., Lyons Cement Plant

Dear Mr. Ikenberry:

Enclosed with this letter is a check for $12,000.00. This check is to comply with the financial assurance requirement requested by the Hazardous Materials and Waste Management Division of the Colorado Department of Public Health and Environment for our TDF Test. The tires for the test will only be at our facility for the duration of the test which we anticipate to be about two weeks. At the conclusion of the test any remaining tires will be cleaned up and returned to the supplier. When the tires have been satisfactorily cleaned up and removed, CEMEX Inc., Lyons Cement will a request a refund of the financial assurance.

If there are any questions please call at 303-823-2113.

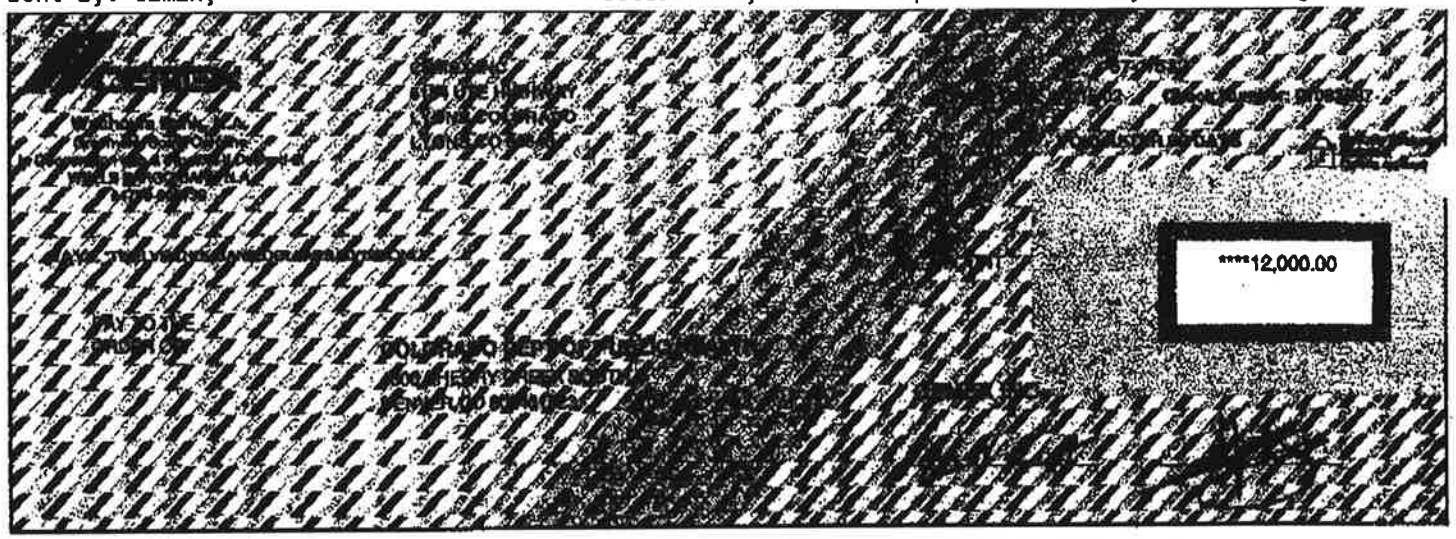
Sincerely,

Steve Mossberg
Compliance Manager

Encl. - $12,000.00 check

Cc: Gabi Hoefler, Boulder County Health Department
John Lohr

United States Operations
P.O. Box 529, Lyons, Colorado 80540, USA. Phone: (303) 823-2100. Fax: (303) 823-2199



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Company: CEMEX INC
Vendor Code: 15201485

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Name: COLORADO DEPT OF PUBLIC HEALTH

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